TENTATIVE RULINGS

DEPT CX102

Judge Layne H. Melzer

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the court's policy on the use of privately retained court reporters which can be found on the court's website at Court Reporter Services | Superior Court of California | County of Orange.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5302. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

APPEARANCES: Department CX102 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75, California Rule of Court (CRC) 3.672 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at Civil Remote Hearings | Superior Court of California | County of Orange prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available on the website. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") contained on the Court's website will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

TENTATIVE RULINGS 7/23/2026 02:00 PM

100	**Aristondo vs. Prospera Management Inc.** **2023-01334274**	**Final Accounting** The settlement administrator, Phoenix Settlement Administrators, has confirmed that the distribution of the settlement funds has been completed and made in accordance with the terms of the settlement that were approved by the Court. As Plaintiff has shown that the administrator's work is complete, the Court's file may now be closed. Plaintiff is ordered to give notice of this ruling to Defendant.
101	**Barraza vs. Alta Newport Hospital, LLC** **2023-01304199**	**Final Accounting** The Court's previous minute order continued the Final Accounting hearing from 5/21/2026 to 7/23/2026 "to *confirm* that the amount of the uncashed checks after the check-cashing deadline *has been delivered* to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, *that the administrator's work is complete*, and that the Court's file thus may be *closed*." (ROA #155, emphases added.) In advance of this 7/23/2026 hearing, the parties filed on 6/29/2026 a supplemental declaration from the administrator dated 6/22/2026 in which the administrator attested only that uncashed "funds shall be remitted [to the State Controller] on or about June 30." (ROA #157, ¶ 4.) Accordingly, the parties have not provided confirmation that the uncashed funds have already been delivered to the State Controller and that the administrator's work is complete. Therefore, the Court must further **CONTINUE** the Final Accounting hearing to August 6, 2026 at 2:00 p.m. in Department CX102 to confirm that the amount of the uncashed funds after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the administrator's work is complete, and that the Court's file thus may be closed. All supporting papers must be filed at least sixteen (16) court days before the continued hearing date. If the parties are unable to provide such confirmation by this date, the parties shall seek a further continuance of the hearing instead of submitting another premature declaration by the administrator stating that the administrator's work is not yet complete. Plaintiff is ordered to give notice of this ruling to Defendant.

102	**Fierro vs. 5.11, Inc.** **2020-01171395**	**Final Accounting** The Court has reviewed Plaintiff's supplemental submissions and signed and entered the Further Revised Order of Final Approval and Judgment. As Plaintiff has shown that the administrator's work is complete, the Court's file may now be closed. Plaintiff is ordered to give notice of this ruling and the signed order to Defendant.
103	**Keys vs. PeopleScout MSP, LLC** **2022-01244825**	**Final Accounting** The settlement administrator, Phoenix Settlement Administrators, has confirmed that the distribution of the settlement funds has been completed and made in accordance with the terms of the settlement that were approved by the Court. As Plaintiffs have shown that the administrator's work is complete, the Court's file may now be closed. Plaintiffs are ordered to give notice of this ruling to Defendant.
104	**Nolte vs. Oasis Outsourcing III, Inc.** **2019-01111809**	**Final Accounting** The settlement administrator, ILYM Group, has confirmed that the distribution of the settlement funds has been completed and made in accordance with the terms of the settlement that were approved by the Court. As Plaintiff has shown that the administrator's work is complete, the Court's file may now be closed. Plaintiff is ordered to give notice of this ruling to Defendant.

105	**Rosales vs. Harbor Distributing, L.L.C.** **2023-01300842**	**Final Accounting** Plaintiffs Miguel Rosales, Elio Ruben Alonso, Johnny Marquez, and Leo Patino's Final Accounting hearing **is CONTINUED to September 24, 2026 at 2:00 p.m. in Department CX102.** On 7/24/2025, the Court entered a minute order conditionally granting Plaintiffs' motion for final approval of the class and PAGA settlement. (ROA #144.) That order specified that Class Counsel must file the administrator's final report at least 16 calendar days before the Final Accounting hearing, and that if the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance. (*Id.* at p. 3.) On 7/28/2026, the Court corrected the 7/24/2025 minute order nunc pro tunc to state that the Final Accounting hearing is set for 7/23/2026 at 2:00 p.m. in Department CX102, and all other portions of the minute order issued 7/24/2025 remain in full force and effect. (ROA #148.) On 8/12/2025, the Court entered the final order and judgment approving the class action and PAGA settlement, which also specified that Class Counsel must file the administrator's final report at least 16 calendar days before the Final Accounting hearing. (ROA #166 at ¶ 19.) As of 7/20/2026, no papers have been filed. No continuance has been requested, either. The Court therefore **SETS an Order to Show Cause re Monetary Sanctions against Class Counsel to September 24, 2026 at 2:00 p.m. in Department CX102.**for counsel's failure to comply with the Court's 7/24/2025 order. Any response to the OSC must be filed at least 5 court days prior to the OSC hearing. The Court also **ORDERS** Class Counsel to submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the continued hearing date. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement Agreement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of another Order to Show Cause re Monetary Sanctions. Clerk to provide notice.

106	**Purcell vs. Potratz** **2019-01115653**	**1. Motion to Appear Pro Hac Vice** **2. Status Conference** Defendants GPB Capital Holdings II, L.P.; GPB Automotive Portfolio, L.P.; and GPB Capital Holdings, LLC's application for pro hac vice admission of attorney Glen A. Kopp is GRANTED. On or before the anniversary of the date of this order, if this attorney remains counsel for the moving parties, the moving parties must pay an annual renewal fee of five hundred dollars ($500) for each year that the attorney maintains pro hac vice status in this case. (Gov. Code, § 70617, subd. (e)(2).) Moving parties shall provide notice.
107	**Aguilar vs. Omni Logistics LLC** **2025-01490214**	**1. Demurrer to Complaint** **2. Case Management Conference** Defendant Omni Logistics, LLC has filed a demurrer to abate/stay under Code of Civil Procedure (CCP) section 430.10, subdivision (c) or, in the alternative, a motion to stay the instant action based upon the doctrine of exclusive concurrent jurisdiction. (ROA #20.) Plaintiff Miguel Aguilar did not file an opposition to the motion. Plaintiff's failure to oppose the demurrer/motion may be treated as an abandonment of the issue or implied concession on the merits. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.) The Court has considered the substance of Defendant's demurrer/motion. The Court **SUSTAINS IN PART** the demurrer as to the requested order to abate or stay the instant action but **OVERRULES** the demurrer to the extent it seeks such an order without leave to amend. Nevertheless, the Court **GRANTS** Defendant's motion to stay under the doctrine of exclusive concurrent jurisdiction. Accordingly, the Court **ORDERS** that the instant action is stayed pending the final resolution of *Magana v. OMNI Logistics, LLC*, Los Angeles Superior Court Case No. 24STCV24638. (See CCP, § 1049 ["An action is deemed to be pending from the time of its commencement until its final determination upon appeal, or until the time for appeal has passed, unless the judgment is sooner satisfied.].) Defendant's Requests for Judicial Notice at ROA #18 and ROA #52 are **GRANTED**. (Evid. Code, § 452, subd. (d).) "A plea in abatement pursuant to section 430.10, subdivision (c), may be made by demurrer or answer when there is another action pending between the same parties on the same cause of action." (*Plant Insulation Co. v. Fiberborad Corp.* (1990) 224 Cal.App.3d 781, 787, emphases omitted.) Here, the Court finds that the *Magana* action is such an action based upon the allegations of the operative complaint in this action and the facts judicially noticed.

		"The only relief to which a litigant is entitled upon the plea, by either demurrer or answer, that a prior action between the same parties is pending and undetermined is the judgment specified by section 597, Code of Civil Procedure, that the second action abate." (*Lord v. Garland* (1946) 27 Cal.2d 840, 851.) Here, Defendant's notice of demurrer stated that it "demur[s] to the complaint under California Code of Civil procedure section 430.10(c)" and seeks an order "to abate/stay the instant action." (ROA #20, p. 2.) Therefore, the only relief to which Defendant is entitled is the judgment specified by CCP section 597. The judgment permitted under CCP section 597 is an "interlocutory judgment . . . entered in favor of the defendant . . . that no trial of other issues shall be had until the final determination of that other action." Although Defendant's Notice of Plaintiff's Non-Opposition contends that the instant case is now "subject to dismissal" because the *Magana* action has reached a final judgment (ROA #51, p. 2; see also ROA #52), the Court notes that Defendant's demurrer was noticed as being brought under CCP section 430.10, subdivision (c), and the demurrer seeks only abatement or a stay. "When a demurrer is sustained on the ground of another action pending, the proper order is not a dismissal, but abatement of further proceedings pending termination of the first action." (*Plant Insulation Co. v. Fibreborad Corp.* (1990) 224 Cal.App.3d 781, 787, citing CCP, § 597 and *Lord*, *supra*, 27 Cal.2d at p. 851; see also *Cal. Union Insurance Co. v. Trinity River Land Co.* (1980) 105 Cal.App.3d 104, 109, fn. 3 ["the appropriate action [is] an abatement, not a dismissal"].) Moreover, when sustaining a demurrer based upon CCP section 430.10, subdivision (c), it would be "an abuse of discretion to withhold leave to amend." (*Lord*, *supra*, 27 Cal.2d at p. 851.) Therefore, the Court declines to sustain the instant demurrer without leave to amend, as requested by Defendant. However, the Court also notes that the instant ruling is **without prejudice to Defendant bringing another demurrer** to "plead the res judicata effect of the [*Magana*] judgment in bar of the subsequent action" upon the expiration of the stay in this action. (*Id.* ["If a judgment upon the merits is rendered in the suit first commenced, the party asserting the plea in abatement should be granted leave to amend to plead the res judicata effect of the judgment in bar of the subsequent action"].) **Nevertheless, the Court rules that a stay is warranted under the doctrine of exclusive concurrent jurisdiction**. "Unlike the statutory plea of abatement, the rule of exclusive concurrent jurisdiction does not require absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions." (*Plant*, *supra*, 224 Cal.App.3d at p. 788.) Therefore, even if there is not an absolute identity of parties, causes of action or remedies sought between the *Magana* action and the instant action, the Court may stay the instant action under the rule of exclusive concurrent jurisdiction because the Court finds that the *Magana* court "has the power to bring before it all the necessary parties" and "the power to litigate all the

		issues and grant all the relief to which any of the parties might be entitled under the pleadings." (*Id.*) Defendant shall give notice.
108	**Bojorquez vs. Hood Pacific Contractors, Inc.**	**Motion for Leave to Amend** Plaintiff Jose Bojorquez's Motion for Leave to File Second Amended Complaint is **GRANTED.** (Code Civ. Proc. [CCP], § 473, subd. (a)(1).) Plaintiff Bojorquez seeks an order granting him leave to file a second amended complaint (SAC) solely to add a new named plaintiff, Filiberto Rodriguez Murillo, as an additional class representative. The SAC still asserts the exact same claims, based on the same policies and practices, during the same class period already at issue in the operative complaint. (ROA #42, Mot. P&A, p. 1.) Defendant Hood Pacific Contractors, Inc. opposes the motion solely on the ground that on 6/18/2026, the Court granted Defendant's motion to compel arbitration and (1) ordered Plaintiff Bojorquez to arbitrate his individual claims against Defendant, (2) dismissed Plaintiff Bojorquez's class claims due to the class waiver in Plaintiff Bojorquez's arbitration agreement with Defendant, and (3) stayed Plaintiff Bojorquez's remaining PAGA claim pending completion of the arbitration pursuant to CCP section 1281.4. (ROA #71, Opp., at p. 1, citing ROA #69 [6/18/2026 minute order].) Defendant contends that Plaintiff's motion for leave to amend "violates this Court's order, is brought in the wrong forum (Court versus arbitration), and would require Hood . . . to litigate in two different forums." (*Id.*) Defendant contends that "[i]f the Court elects to entertain Plaintiff's motion despite the stay, Defendant would be prejudiced by permitting amendment of Plaintiff Bojorquez s first amended complaint because (1) it would force Defendant to litigate in two forums regarding the same case at the same time and (2) permit Plaintiff Murillo to circumvent both the Court's stay and dismissal of the Class claims." (*Id.*) All of Defendant's arguments lack merit. The Court's 6/18/2026 order granted a stay of Plaintiff Bojorquez's remaining PAGA claim pending completion of the ordered arbitration under CCP section 1281.4. (ROA #69.) That statute provides, in relevant part: > If a court . . . has ordered arbitration of a controversy *which is an issue involved in an action or proceeding pending before a court of*

		this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies. (CCP, § 1281.4, emphasis added.) Accordingly, the Court stayed Plaintiff Bojorquez's remaining PAGA claim because the Court had compelled arbitration of *Plaintiff Bojorquez's individual claims* against Defendant to arbitration, and his remaining PAGA claim involves at least some of the same issues that will be arbitrated. Indeed, "[t]he purpose of the statutory stay is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved. In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective." (*Heritage Provider Network, Inc. v. Super. Ct.* (2008) 158 Cal.App.4th 1146, 1152, internal quotes & citations omitted; see also *SWAB Financial, LLC v. E*Trade Securities, LLC* (2007) 150 Cal.App.4th 1181, 1199-1200, internal quotes omitted, emphases added [after imposing stay pursuant to CCP section 1281.4, "the trial court's power to *interfere in the pending arbitration was strictly limited*," as "the action at law sits in a twilight zone of abatement with the trial court retaining merely vestigial jurisdiction *over matters submitted to arbitration*"].) The instant motion for leave to amend to *add a new plaintiff* does not affect the arbitrator's jurisdiction over *Plaintiff Bojorquez's individual claims against Defendant* in any way. Therefore, granting the instant motion would not violate the stay under CCP section 1281.4. Nor is the instant motion brought in the wrong forum. As the arbitration ordered by the Court is only as to *Plaintiff Bojorquez's individual claims against Defendant*, the arbitrator has no jurisdiction over *another plaintiff's claims against Defendant*. Additionally, even where the original named plaintiff's individual claims against a defendant are dismissed, the court retains jurisdiction over the case until a final judgment is entered. (See *Shapell Industries, Inc. v. Super Ct.* (2005) 132 Cal.App.4th 1101, 1108-1109.) Defendant has also failed to explain why *its arbitration agreement with Plaintiff Bojourquez* insulates Defendant from having to litigate claims asserted by another plaintiff. Although Defendant contends in its opposition that the proposed new "Plaintiff Murillo has an arbitration agreement as well" (Opp. at p. 2), this assertion is not supported by any admissible evidence. Moreover, just because Defendant alleges Plaintiff Murillo "has an arbitration agreement" does not necessarily mean the arbitration agreement is valid or enforceable. These issues are not ripe for adjudication at this time. (See *Atkinson v. v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760 ["better course of action" is to grant leave to amend the complaint "and then let the parties test its legal sufficiency in other appropriate proceedings"].) At bottom, Defendant has failed to show why the instant complaint may not be amended to add a new plaintiff. CCP section 473, subdivision (a)(1)

		provides that "[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading . . . by adding . . . the name of any party." "Amendments to complaints under Code of Civil Procedure section 473, subdivision (a), are liberally allowed to substitute in plaintiffs with standing for original plaintiffs without standing." (*CashCall, Inc. v. Super. Ct.* (2008) 159 Cal.App.4th 273, 287, internal quotes omitted, citing *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 1004-1011.) This "general rule allowing substitution of new plaintiffs with standing in place of original plaintiffs without standing applies to class actions" and equally to "a plaintiff who initially had standing when the class action complaint was filed, but subsequently lost his or her standing" and to "a plaintiff who never had standing when the complaint was filed." (*Id.* at pp. 288-289.) Plaintiff shall give notice.
109	**Jefferson vs. Alignment healthcare USA, LLC, a Delaware limited liability company;** **2026-01546489**	**Motion to Compel Arbitration** In light of Plaintiff Jenny Jefferson's Non-Opposition (ROA #21) to Defendant Alignment Healthcare USA, LLC's Motion to Compel Individual Arbitration of Plaintiff's Claims and Dismiss Action (ROA #14), the Court **GRANTS** Defendant's motion. Plaintiff is **ORDERED t**o arbitrate her individual claims against Defendant. Plaintiff's class claims against Defendant are hereby **DISMISSED WITHOUT PREJUDICE** as to the rights of the absent putative class members. This action is otherwise **STAYED** until the arbitration is had pursuant to Code of Civil Procedure section 1281.4. **An ADR review hearing is scheduled for February 25, 2027 at 9:30AM in Department CX102**. The parties shall submit a joint status report 10 days in advance of the hearing. Defendant shall give notice of this ruling.
110	**NB CP Cincy, DST vs. Versity Invest, LLC** **2026-01543537**	**Motion to Compel Mediation** All Defendants' Motion to Compel Mediation and Stay Proceedings Pending Mediation is **DENIED**. Defendants, as the moving parties, have not established that the Court has authority to compel mediation in this case. In their opening brief, Defendants cite Code of Civil Procedure ("CCP") section 1775. (Mot. at p. 7.) However, CCP sections 1775, et seq. relate to the Civil Action Mediation Program, which is a separate court-ordered program that also applies only mandatorily to Los Angeles County Superior Court. (CCP, § 1775.2, subd. (a).) Defendants make no showing that this case even falls under CCP sections 1775, et seq. Defendants also Evidence Code section 1116. (Mot. at p. 10.) But Evidence Code sections 1115, et seq. deal with the *confidentiality* of mediation proceedings, and section 1116, subdivision (a) explicitly states that

		"[n]othing in this chapter expands or limits a court's authority to order participation in a dispute resolution proceeding" or "authorizes or affects the enforceability of a contract clause in which parties agree to the use of mediation." Defendants also cite *Frei v. Davey* (2004) 124 Cal.App.4th 1506. (Mot. at p. 7.) However, *Frei* involved the resolution of *a motion for attorneys' fees* by enforcing a contractual provision that bars prevailing parties from recovery attorneys' fees if they commence a court action without first attempting to resolve the matter through mediation. (*Frei*, *supra*, 124 Cal.App.4th at pp. 1508-1509.) *Frei* does not hold that a court may enforce contractual mediation by granting a *motion to compel the parties to participate in mediation*. Defendants also cite *Cione v. Foresters Equity Services, Inc.* (1997) 58 Cal.App.4th 625 and CCP sections 1281 and 1281.4. (Mot. at p. 7.) However, both *Cione* and the cited statutory provisions involve motions to compel *arbitration*, not *mediation*. Moreover, there is also contrary authority indicating courts may *not* compel parties to mediation, as mediation is "voluntary," and "unless the parties have agreed to a binding award, any party who voluntarily enters mediation may revoke its consent and withdraw from the dispute resolution process." (*Jeld-Wen, Inc. v. Super. Ct.* (2007) 146 Cal.App.4th 536, 540-541; see also Bus. & Prof. Code, § 467.7, subd. (a) ["Unless the parties have agreed to a binding award, nothing in this chapter shall be construed to prohibit any person who voluntarily enters the dispute resolution process from revoking his or her consent, withdrawing from dispute resolution, and seeking judicial or administrative redress"]; *Kirschenman v. Super. Ct.* (1994) 30 Cal.App.4th 832 [trial "court had no statutory authority *to require* the parties to participate in mediation," and "parties are specifically not prohibited from revoking consent to participate in voluntary dispute resolution"].) Here, Defendants have not shown that the parties agreed to any "binding award" through mediation. In fact, the cited "Dispute Resolution" provision also states only that "[t]he parties *will* first attempt in good faith to promptly resolve the Dispute by negotiations between such parties," but "[i]f the Dispute has not been resolved by the disputing parties within 60 days after the disputing party's notice, . . . either party *may* initiate mediation of the Dispute." (ROA #30, Wettengel Decl., Exh. 1 [Versity I Operating Agreement], ¶¶ 13.4(a), (b), emphasis added.) Not only does the word "may" in the subparagraph (b) suggest that initiating mediation is optional, but subparagraph (c) then goes on to state that "if either party will not participate in a mediation, then the aggrieved party may file an appropriate action in any state . . . court located within the County of Orange in the State of California." (*Id.* at ¶ 13.4(c).) Therefore, the cited "Dispute Resolution" provision does not even itself require the parties to participate in mediation, much less provide for a court to compel the parties to mediate.

111	**Versity Investments, LLC vs. Versity Invest, LLC**	**Motion to Compel Mediation** All Defendants' Motion to Compel Mediation and Stay Proceedings Pending Mediation are **DENIED**. Defendants, as the moving parties, have not established that the Court has authority to compel mediation in this case. In their opening brief, Defendants cite Code of Civil Procedure ("CCP") section 1775. (Mot. at p. 7.) However, CCP sections 1775, et seq. relate to the Civil Action Mediation Program, which is a separate court-ordered program that also applies only mandatorily to Los Angeles County Superior Court. (CCP, § 1775.2, subd. (a).) Defendants make no showing that this case even falls under CCP sections 1775, et seq. Defendants also Evidence Code section 1116. (Mot. at p. 10.) But Evidence Code sections 1115, et seq. deal with the *confidentiality* of mediation proceedings, and section 1116, subdivision (a) explicitly states that "[n]othing in this chapter expands or limits a court's authority to order participation in a dispute resolution proceeding" or "authorizes or affects the enforceability of a contract clause in which parties agree to the use of mediation." Defendants also cite *Frei v. Davey* (2004) 124 Cal.App.4th 1506. (Mot. at p. 7.) However, *Frei* involved the resolution of *a motion for attorneys' fees* by enforcing a contractual provision that bars prevailing parties from recovery attorneys' fees if they commence a court action without first attempting to resolve the matter through mediation. (*Frei*, *supra*, 124 Cal.App.4th at pp. 1508-1509.) *Frei* does not hold that a court may enforce contractual mediation by granting a *motion to compel the parties to participate in mediation*. Defendants also cite *Cione v. Foresters Equity Services, Inc.* (1997) 58 Cal.App.4th 625 and CCP sections 1281 and 1281.4. (Mot. at p. 7.) However, both *Cione* and the cited statutory provisions involve motions to compel *arbitration*, not *mediation*. Moreover, there is also contrary authority indicating courts may *not* compel parties to mediation, as mediation is "voluntary," and "unless the parties have agreed to a binding award, any party who voluntarily enters mediation may revoke its consent and withdraw from the dispute resolution process." (*Jeld-Wen, Inc. v. Super. Ct.* (2007) 146 Cal.App.4th 536, 540-541; see also Bus. & Prof. Code, § 467.7, subd. (a) ["Unless the parties have agreed to a binding award, nothing in this chapter shall be construed to prohibit any person who voluntarily enters the dispute resolution process from revoking his or her consent, withdrawing from dispute resolution, and seeking judicial or administrative redress"]; *Kirschenman v. Super. Ct.* (1994) 30 Cal.App.4th 832 [trial "court had no statutory authority *to require* the parties to participate in mediation," and "parties are specifically not prohibited from revoking consent to participate in voluntary dispute resolution"].) Here,

		Defendants have not shown that the parties agreed to any "binding award" through mediation. In fact, the cited "Dispute Resolution" provision also states only that "[t]he parties *will* first attempt in good faith to promptly resolve the Dispute by negotiations between such parties," but "[i]f the Dispute has not been resolved by the disputing parties within 60 days after the disputing party's notice, . . . either party *may* initiate mediation of the Dispute." (ROA #30, Wettengel Decl., Exh. 1 [Versity I Operating Agreement], ¶¶ 13.4(a), (b), emphasis added.) Not only does the word "may" in the subparagraph (b) suggest that initiating mediation is optional, but subparagraph (c) then goes on to state that "if either party will not participate in a mediation, then the aggrieved party may file an appropriate action in any state . . . court located within the County of Orange in the State of California." (*Id.* at ¶ 13.4(c).) Therefore, the cited "Dispute Resolution" provision does not even itself require the parties to participate in mediation, much less provide for a court to compel the parties to mediate.
112	**Padilla vs. Connect Staffing Inc.** **2025-01524286**	1. **Motion to Compel Arbitration (Connect Staffing)** 2. **Joinder (Evans Manufacturing)** 3. **Motion to Compel Arbitration (Bar Bakers)** 4. **Case Management Conference** **1. Defendant Connect Staffing Inc.'s Motion to Compel Arbitration** Defendant Connect Staffing Inc.'s motion to compel arbitration is **GRANTED**. As an initial matter, Plaintiff does not dispute that the subject arbitration agreement is governed by the Federal Arbitration Act (FAA); that he has refused arbitration; and that the arbitration agreement applies to his individual claims alleged in this action. Plaintiff also does not contend that, if the Court orders Plaintiff to arbitrate his individual claims, that his class claims should not be dismissed. Instead, Plaintiff contends only that (1) no valid arbitration agreement exists and (2) the arbitration agreement is procedurally and substantively unconscionable. **A. Existence of Valid Arbitration Agreement** Both the FAA and the California Arbitration Act (CAA) require the existence of a valid Arbitration Agreement before arbitration can be compelled. (See 9 U.S.C. § 2; Code Civ. Proc. [CCP], § 1281.2.) The court must order arbitration if it determines that an agreement to arbitrate the controversy exists. (CCP § 1281.2.) The petitioner bears the initial burden of producing prima facie evidence of a written agreement to arbitrate the controversy, which can be satisfied either by setting forth the agreement's provisions in the motion or by attaching to the motion a copy of the arbitration agreement purporting to bear the opposing party's signature; ***"[f]or this step, it is not necessary to follow***

		***normal procedures of document authentication*.**" (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal quotes omitted, emphasis added; see also Cal. Rules of Court [CRC], rule 3.1330 [requiring same].) Here, Connect satisfied its initial burden by producing a copy of the subject agreement via the declaration of Cima Johnson. (ROA #14, passim, Exh. A.) The agreement is contained in Connect's employee handbook both in English and in Spanish. (*Id.*, pp. 14-16 [English], 54-56 [Spanish].) Plaintiff's purported signatures can be found on the "Handbook Receipt and Acknowledgment" page at the end of the exhibit, under both the English and Spanish versions of the acknowledgment. (*Id.* at p. 57.) Plaintiff's objections to any failure by Connect to follow normal procedures of document authentication for this initial step are not well taken, particularly given Plaintiff's own citation to *Gamboa* (see ROA #40, Opp., at p. 2). The burden then shifts to the opposing party to produce evidence to challenge the authenticity of the agreement. (*Gamboa*, *supra*, 72 Cal.App.5th at p. 165.) "If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties." (*Id.* at pp. 166-167.) The petitioner must satisfy their burden "by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination." (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842, internal citations omitted.) Here, in opposition, Plaintiff submitted his own declaration, attesting that he cannot read and/or write English" and "can write and speak layman Spanish but . . . cannot read or understand legal jargon Spanish"; that he is "100% that at time of onboarding or at any time working for Connect, [he] was not given over 50 pages of the Connect Employee Handbook to review, either in English or Spanish"; that he was "not given the full Connect Employee Handbook to review before signing any acknowledgment or employment paperwork"; that he was not told that "by signing any handbook receipt, acknowledgment, or employment paperwork, [he] was agreeing to arbitrate claims against Connect Staffing, Inc., Evans Manufacturing, LLC, Bar Bakers, LLC, or any other employer defendant"; that "[n]o one from Connect Staffing, Inc. explained to [him] that any document [he] signed contained an arbitration agreement or arbitration policy in the Connect Employee Handbook," that "[he] was giving up my right to bring claims in court, [his] right to a jury trial, or [his] right to participate in a class, collective, representative, or PAGA action," or that "any document [he] signed would prevent [him] from bringing claims in court against Evans Manufacturing, LLC"; and that he was "not given a meaningful opportunity to review any documents, being the Connect Employee Handbook and/or arbitration agreement, arbitration policy, . . . before signing documents" and "was not told that [he] could take any arbitration agreement, arbitration

		policy, or the Connect Employee Handbook home, ask an attorney to review it, or refuse to sign it without affecting [his] work assignment." (ROA #44, passim.) In short, Plaintiff contends that he "did not knowingly or voluntarily agree to waive [his] right to have [his] claims heard in court, [his] right to a jury trial, or [his] right to participate in class, collective, representative, or PAGA claims." (*Id.* at ¶ 22.) In reply, Connect submitted the declaration of Nick Hinrichs, Connect's Senior Operations Analyst with "ultimate responsibility for and oversight of Connect's human resources functions for Connect's operations in California." (ROA #52, ¶ 2.) Hinrichs attested that he is "familiar with Connect's history, business operations, hiring and employment practices, recordkeeping practices, and onboarding practices for new employees" and has "knowledge of the manner in which Connect hires and onboards employees and how Connect maintains and has maintained employee personnel files in the ordinary course of business"; when applying for employment with Connect, Padilla provided his email address, which is "required to set up an account to complete onboarding documents electronically, and the email address becomes the username associated with that employee's account"; that when Padilla was offered employment, he "was sent onboarding documents, including the Connect Employee Handbook, via a secure link to Padilla's employee portal account using Padilla's personal email address identified above"; that Connect used Adobe Acrobat Sign to send the handbook and obtain Padilla's electronic signature; that "[g]iven the process described above for accessing and signing onboarding documents, and given Connect's use of unique usemames and passwords associated with an employee's email address, the electronic signature appearing on Padilla's Handbook Receipt and Acknowledgment could only have been placed on that document by someone using the unique usemame and password associated with Padilla's employee account." (*Id.*, passim.) The Court has weighed all the declarations and documentary evidence and finds that Connect has satisfied its burden of demonstrating the existence of a valid arbitration agreement between the parties by a preponderance of the evidence. The Court finds that Plaintiff received and signed the handbook electronically. Plaintiff contends that because Plaintiff signed only a "Handbook Receipt and Acknowledgment," and not a "standalone" arbitration agreement with its own signature line, Plaintiff did not assent to an arbitration agreement. (See, e.g., Opp., pp. 3 ["the purported arbitration provision appears only within the body of an unsigned handbook, and the only document bearing any alleged signature is a generic acknowledgment page that has no signature for the arbitration, but certification of acknowledging 'at will' employment," so "[i]t is obvious that this signature certification is not for the arbitration agreement, but only for 'at will' employment"], 4 [the arbitration agreement "appears within the body of the Connect Staffing Employee Handbook, at pages 54 through 56," and "[t]hat document contains no signature line, no employee name, no date, and no initials"]; 5 ["an acknowledgment of receipt of policies is not equivalent to assent to arbitration disputes"].) In short, Plaintiff contends that "an employee

		handbook, standing alone, does not constitute a binding contract." (*Id.* at p. 5.) This argument fails. In *24 Hour Fitness, Inc. v. Super. Ct.* (1998) 66 Cal.App.4th 1199, the court found that a valid arbitration agreement existed where an employee had signed a "Certificate of Acknowledgment Of Receipt & Reading The Personnel Handbook" that explicitly referred to the handbook's section on arbitration and that stated, "I also read and specifically agree that if there is any dispute arising out of my employment as described in the section called 'Arbitration of Disputes' in the handbook, I will submit it exclusively to binding and final arbitration according to the procedures outlined in the 'Employment Arbitration Procedures Manual.'" (*Id.* at p. 1205 & fn. 1; see also *Nghiem v. NEC Electronic, Inc.* (9th Cir. 1994) 25 F.3d 1437, 1439-1440, internal quotes & ellipses omitted ["While the FAA requires a writing, it does not require that the writing be signed by the parties," and "an agreement to arbitrate an issue need not be express; it may be implied from the conduct of the parties"].) The acknowledgment form here is similar in that it explicitly states: "I further understand and agree that I am bound by the provisions of the Handbook, particularly the provision relating to the mandatory, binding arbitration of any wage and contract clain1s arising out of my employment. I understand that by agreeing to arbitration, I am waiving the right to a trial by jury of the matters covered by the 'Arbitration' provisions of the Handbook, with exception to enumerated types of claims." (ROA #14, Exh. A, p. 57.) Moreover, none of the cases Plaintiff cites are applicable here: *Mitri v. Arnel Management Co.* (2007) 157 Cal.App.4th 1164; *Romo v. Y-3 Holdings, Inc.* (2021) 87 Cal.App.5th 1110; *Esparza v. Sand & Sea, Inc.* (2016) 2 Cal.App.5th 781; and *Flores v. Nature's Best Distribution* (2016) 7 Cal.App.5th 1. (Opp. at p. 6.) Although each of these cases involved an arbitration agreement contained within an employee handbook, all of the cases are nevertheless factually distinguishable. *Mitri* involved an arbitration provision that explicitly stated "[e]mployees will be provided a copy of their signed arbitration agreement," but "[t]here [wa]s no 'signed arbitration agreement.'" (*Mitri*, *supra*, 2 Cal.App.4th at p. 1168.) Moreover, the signed acknowledgment form did not mention the arbitration agreement in any way and specified only that the employee's "signature acknowledges that [the employee] ha[s] read and understood the statements above as well as the contents of the Handbook, and will direct any questions to my supervisor or the Director of Human Resources." (*Id.*) Likewise, in *Romo*, the handbook included a "MUTUAL AGREEMENT TO ARBITRATE CLAIMS" in Section VIII, which "contains lines for dates and signatures of the employee and the employer, neither of which is signed or dated." (*Romo*, *supra*, 87 Cal.App.4th at pp. 1155-1156.) The "EMPLOYEE ACKNOWLEDGMENT" that was signed did not mention the arbitration provision in any way. (*Id.* at p. 1156.) Here, in contrast to both *Mitri* and *Romo*, the arbitration agreement does not specify that a separate "signed arbitration agreement" exists or will be

provided. Moreover, the signed acknowledgment form expressly specifies that signing the form represents agreement to the arbitration provisions, as quoted above. (ROA #14, Exh. A, p. 57.)

As for *Esparza*, the handbook at issue there expressly stated on the first page, "this handbook is not intended to be a contract (express or implied), nor is it intended to otherwise create any legally enforceable obligations on the part of the Company or its employees." (*Esparza*, *supra*, 2 Cal.App.5th at p. 783.) No such statement appears in the handbook at issue here. Also, in *Esparza*, the acknowledgment form mentioned the arbitration provision as "one of the 'policies, practices, and procedures' of the company," but "did not state that the employee agreed to the arbitration provision, and expressly recognized that the employee had not read the handbook at the time she signed the form." (*Id.*) Here, as explained above, the acknowledgment form expressly stated that by signing, the employee would be bound by the arbitration provisions of the handbook.

Finally, as for *Flores*, that case is inapposite because it involved wholly different facts involving an ambiguous agreement that did not identify or define the employer and failed to define which disputes would be subject to arbitration before the AAA versus through the grievance and arbitration procedure contained in a separate collective bargaining agreement. (*Flores*, *supra*, 7 Cal.App.5th at pp. 9-10.) Accordingly, the court in *Fores* could not "conclude that the parties reached agreement." (*Id.* at p. 11.) No such ambiguities exist in the instant case.

Therefore, the Court finds that a valid arbitration agreement exists. The remainder of Plaintiff's arguments will be addressed in the next section, as they relate to unconscionability.

B. Unconscionability

Unconscionability has both a procedural and a substantive element: The procedural element focuses on the existence of "oppression or surprise due to unequal bargaining power," and the substantive element focuses on "overly harsh or one-sided results." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114, internal quotes omitted.) For unconscionability to render an agreement or clause unenforceable, both procedural and substantive unconscionability must be present—but "they need not be present in the same degree." (*Id.*) A "sliding scale" applies such that "the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Id.*)

The party opposing arbitration bears the burden of proving an unconscionability defense. (*Prima Donna Development Corp. v. Wells Fargo Bank, N.A.* (2019) 42 Cal.App.5th 22, 42.)

i. Procedural Unconscionability

"Procedural unconscionability concerns the manner in which the contract was negotiated and the circumstances of the parties at that time. It focuses on the factors of oppression and surprise. The oppression component arises from an inequality of bargaining power of the parties to the contract and an absence of real negotiation or a meaningful choice on the part of the weaker party." (*Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329, internal quotes & citations omitted.) "'Surprise' involves the extent to which the supposedly agreed-upon terms of the bargain are hidden in a prolix printed form drafted by the party seeking to enforce the disputed terms." (*A & M Produce Co. v. FMC Corp.* (1982) 135 Cal.App.3d 473, 486.)

Here, Plaintiff contends that the circumstances of the contract's formation involved oppression and surprise because the arbitration agreement was presented in the context of an adhesive employment relationship; no one explained the arbitration provisions to Plaintiff and Plaintiff did not have a meaningful opportunity to review it; the agreement was buried within a 59-page employee handbook; and Plaintiff was not provided with the JAMS rules. (Opp., pp. 7-10.)

a. Contract of Adhesion and Oppression

Where an arbitration agreement is "imposed on employees as a condition of employment and there was no opportunity to negotiate," there is "little dispute" that the arbitration agreement is "adhesive." (*Armendariz*, *supra*, 24 Cal.4th at pp. 114-115; *see also id.* at p. 113 [defining "contract of adhesion" as "a standardized contract, which[is] imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it"].)

However, "the adhesive nature of a contract is one factor the courts may consider in determining the degree of procedural unconscionability." (*Carmona v. Lincoln Millennium Car Wash, Inc.* (2014) 226 Cal.App.4th 74, 84, fn. 4.) Moreover, the "adhesive aspect of an agreement is not dispositive," as overall enforceability still depends on the "sliding scale" analysis of procedural and substantive unconscionability. (*Serpa v. Cal. Surety Investigations, Inc.* (2013) 215 Cal.App.4th 695, 704; see also *Graham v. Scissor-Tail, Inc.* (1981) 28 Cal.3d 807, 817 [contracts of adhesion are "an inevitable fact of life for all citizens"].)

Here, Plaintiff has shown a minimal degree of procedural unconscionability due to the adhesive nature of the agreement. As for Plaintiff's claim that Connect did not explain the arbitration provisions and that Plaintiff had no opportunity to review the agreement, the Court finds Plaintiff's evidence to be lacking on these points. Plaintiff's declaration does not describe in detail the circumstances under which Connect provided him with the handbook and agreement for signature, including any time pressure placed on Plaintiff. Also, the handbook itself states on the very first page: "It is your responsibility and obligation to understand this Handbook and its policies. If there is a policy that you do not understand, please ask the Connect Staffing Branch Manager for clarification. This Handbook contains an arbitration requirement for both you and Connect Staffing, Inc. that waives your right to a trial by jury." (ROA #14, Exh. A, p. 1.) Plaintiff has not attested to asking for any clarification or being refused an opportunity to ask questions.

Therefore, Plaintiff has shown a minimal degree of procedural unconscionability due to the adhesive nature of the agreement.

b. Suprise

Surprise occurs when "the allegedly unconscionable provision is hidden within a prolix printed form." (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126, internal quotes omitted.)

Here, the arbitration provisions were indeed buried within a 59-page document. However, the Court finds that the arbitrations were not hidden in a way that results in surprise sufficient to support a finding of procedural unconscionability. Again, the very first, cover page of the handbook states: "This Handbook contains an arbitration requirement for both you and Connect Staffing, Inc. that waives your right to trial by jury." (ROA #14, Exh. A, p. 1.) Although the handbook is lengthy, it includes a table of contents that expressly identifies the Arbitration Policy as being located on page 14, with a Spanish version located on page 54. (*Id.* at pp. i, iii.) Both pages 14 and 54 include title headings that identify them as setting forth the arbitration provisions. (*Id.* at pp. 14, 54.) The arbitration provisions are not printed in smaller font. (*Id.* at pp. 14-16, 54-56.) And, as discussed above, the Handbook Receipt and Acknowledgment form also expressly state in the first paragraph: "I further understand and agree that I am bound by the provisions of the Handbook, particularly the provision relating to the mandatory, binding arbitration of any wage and contract clain1s arising out of my employment. I understand that by agreeing to arbitration, I am waiving the right to a trial by jury of the matters covered by the 'Arbitration' provisions of the Handbook, with exception to enumerated types of claims." (*Id.* at p. 57.)

Plaintiff also contends that he was not provided with a copy of the JAMS rules. (Opp., p. 8.) However, the arbitration provisions explicitly state: "Copies of the JAMS rules and policies are available at http://www.jamsadr.com." (ROA #14, Exh. A., p. 14.)

To the extent that Plaintiff also contends that no one at Connect explained the arbitration provisions to him and that he did not read or understand the handbook (Opp. at pp. 7-9), these arguments go to the element of surprise, given that the contract is one of adhesion (*Bruni v. Didion* (2008) 160 Cal.App.4th 1272, 1290-1291, internal quotes & citations omitted ["The general rule that one who signs an instrument may not avoid the impact of its terms on the ground that he failed to read the instrument before signing it . . . does not apply to an adhesion contract," but instead, "failure to read the contract helps establish actual surprise"]).

However, as noted above, the first, cover page of the handbook expressly explains that "[t]his Handbook contains an arbitration requirement for both you and Connect Staffing, Inc. that waives your right to trial by jury" and expressly states that "[i]f there is a policy that you do not understand, please ask the Connect Staffing Branch Manager for clarification." (ROA #14, Exh. A, p. 1.) The acknowledgment form Plaintiff signed also expressly called out the arbitration agreement and explained that it means Plaintiff is "waiving the right to a jury trial." (*Id.* at p. 57.)

Therefore, the Court does not find that the agreement is procedurally unconscionable due to surprise.

ii. Substantive Unconscionability

"Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided." (*Hayden v. Elegance at Dublin* (2023) 97 Cal.App.5th 1280, 1287, internal quotes omitted.) "[T]he central idea [is] that unconscionability doctrine is concerned not with a simple old-fashioned bad bargain, but with terms that are unreasonably favorable to the more powerful party." (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 910-911, internal quotes & citations omitted [also confirming that "overly harsh," "unduly oppressive," "so one-sided as to shock the conscience," and "unfairly one sided" all point to this same "central idea"].) Unconscionable terms include those that "contravene the public interest or public policy" or "terms . . . that attempt to alter in an impermissible manner fundamental duties otherwise imposed by the law." (*Id.* at p. 911.)

"The paramount consideration in assessing conscionability is mutuality." (*Alberto v. Cambrian Homecare* (2023) 91 Cal.App.5th 482, 492, internal quotes, brackets, & ellipses omitted.) But "a contract can provide a margin of safety that provides the party with superior bargaining strength a type of extra protection for which it has a legitimate commercial need without being unconscionable." (*Sanchez*, *supra*, 61 Cal.4th at p. 912, internal quotes omitted, quoting *Armendariz*, *supra*, 24 Cal.4th at p. 117.) "[W]here no meaningful choice was exercised upon entering the contract, the test is whether the terms are so extreme as to appear unconscionable according to the mores and business practices of the time and place." (*Id.*, internal quotes omitted.)

Here, Plaintiff contends that the following provisions are substantively unconscionable: (1) Defendant's unilateral right to amend the provisions of the Handbook; (2) the inclusion of a class and representative action waiver; and (3) the language addressing attorneys' fees and cost allocations. (Opp., pp. 11-12.) None of these arguments are availing.

First, although the acknowledgment form generally provides that Connect "has the right to amend, modify, rescind, delete, supplement or add to the provisions of this Handbook, as it deems appropriate from time to time in its sole and absolute discretion" (ROA #14, Exh. A, p. 57), the arbitration policy states more specifically that "[o]nly an officer of the Company may modify this policy in a signed writing and only as is necessary to make this policy enforceable under any federal, state, or local law or other applicable case law effective after the policy's initial dissemination to its workforce" (*id.* at p. 16). The Court finds that the arbitration policy's statement governs the modification of the arbitration policy. In any case, neither the employer's general and unilateral right to amend the Handbook's provisions nor the limited prospective modification authority granted by the arbitration policy make the agreement illusory or otherwise unconscionable. (See *Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 385-390 [holding implied covenant of good faith and fair dealing saves the general, unilateral modification right, and finding unilateral modification authority not to be illusory when it is limited to modifications to conform with laws]; *Serpa v. Cal. Surety Investigations, Inc.* (2013) 215 Cal.App.4th 695, 704-708 ["the implied covenant of good faith and fair dealing is properly applied [to arbitration context] and saves this arbitration contract from being illusory . . . and thus unconscionable"].)

Second, as Plaintiff acknowledges, class waivers are enforceable, and Plaintiff cites no authority for his argument that because the class and representative action waiver states that PAGA "claims will be stayed (i.e., put on hold)" during the arbitration of individual claims (ROA #14, Exh. A, p. 15), "[t]his structure disproportionately benefits the employer by delaying representative enforcement actions" (Opp., p. 12.) To the contrary, when a court compels arbitration of claims subject to arbitration, staying non-arbitrable claims in the remaining action is exactly what Code of Civil Procedure section 1281.4 requires.

Third, Plaintiff incorrectly contends that the arbitration policy restricts or dilutes statutory fee-shifting rights. (Opp. at p. 12.) Instead, as Plaintiff acknowledges, the provision literally states "[e]ach party must pay its own attorneys' fees in connection with the arbitration, and that the arbitrator may not award attorneys' fees *unless the claims involve a contract or statute that allows for attorneys' fees to the prevailing party*." (ROA #14, Exh. A, pp. 14-15, emphasis added.)

Accordingly, the Court finds that the arbitration agreement here is not substantively unconscionable.

As Plaintiff has only demonstrated a minimal degree of procedural unconscionability, the Court finds that the agreement is not unconscionable but is valid and enforceable.

Accordingly, Plaintiff is **ORDERED t**o arbitrate his individual claims against Connect, including Plaintiff's individual PAGA claim against Connect. Plaintiff's class claims against Connect are hereby **DISMISSED** pursuant to the class action waiver in the agreement. And the remainder of this action against Connect, i.e., Plaintiff's representative PAGA claim, is **STAYED** until the arbitration is had pursuant to Code of Civil Procedure section 1281.4.

2. Defendant Evans Manufacturing, LLC's Joinder

Defendant Evans Manufacturing, LLC's motion for joinder in Defendant Connect Staffing Inc.'s motion to compel arbitration is **GRANTED**.

For the reasons stated above with respect to Connect's motion, the Court finds that there exists a valid arbitration agreement between Connect and Plaintiff, and the agreement is enforceable and not unconscionable.

Evans contends that even though it is not a signatory to the arbitration agreement between Connect and Plaintiff, Plaintiff is equitably estopped from refusing to submit his claims against Evans to arbitration under that agreement because "the causes of action against the nonsignatory are intimately founded in and intertwined with the underlying contract obligations." (ROA #30 [Mot. for Joinder], p. 3, internal quotes omitted.) In support, Evans points to Plaintiff's complaint: "Plaintiff's claims are all rooted in his employment with Connect and based on the same operative facts"; and Plaintiff's complaint "fails to distinguish between the named defendants in any[ ]way." (*Id.* at pp. 3-4.)

In opposition, Plaintiff's entire argument is as follows:

> Equitable estoppel applies only in narrow circumstances where the plaintiff's claims are intimately founded in and intertwined with the underlying contract containing the arbitration clause. ([*Goldman v. KPMG LLP* (2009) 173 Cal.App.4th 209,] 217-218.) Here, Plaintiff's claims are statutory wage-and-hour, UCL, and PAGA claims. They arise under California law, not under the Connect Employee Handbook.
>
> Plaintiff does not sue to enforce the Connect Handbook. Plaintiff does not allege breach of the Connect Handbook. Plaintiff's claims do not depend on any handbook provision. The fact that Plaintiff alleges claims against multiple employer defendants does not create arbitration consent. Joint employer allegations do not transform statutory Labor Code claims into contract claims.

(ROA #46 [Opp.], at p. 2.)

These arguments, however, have been rejected by California courts in *Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782 and *Gonzalez v. Nowhere Beverly Hills LLC* (2024) 107 Cal.App.5th 111.

In *Garcia*, a plaintiff-employee filed a complaint against both the staffing agency and the client-employer, alleging that they were "joint employers." (*Garcia*, *supra*, 11 Cal.App.5th at pp. 784-785, 788.) The trial court granted both defendants' motion to compel arbitration under the arbitration agreement between plaintiff and the signatory staffing agency. (*Id.* at p. 785.) Plaintiff appealed the granting of the motion as to the non-signatory client-employer. (*Id.*) The appellate court affirmed, holding:

> [A]ll of [plaintiff's] claims are intimately founded in and intertwined with his employment relationship with [the signatory staffing agency defendant], which is governed by the employment agreement compelling arbitration. [Plaintiff] cannot avoid his obligation arising out of his employment relationship by framing his claims as merely statutory. On these facts, it is inequitable for the arbitration about [Plaintiff's] assignment with [the client-employer defendant] to proceed with [the staffing agency], while preventing [the client-employer] from participating. This is because [plaintiff's] claims against [the client-employer] are rooted in his employment

		> relationship with [the staffing agency], and the governing arbitration agreement expressly includes statutory wage and hour claims. [Plaintiff] does not distinguish between [defendants] in any way. All of [plaintiff]'s claims are based on the same facts alleged against [the staffing agency]. [Plaintiff] cannot attempt to link [the client-employer] to [the staffing agency] to hold it liable for alleged wage and hour claims, while at the same time arguing the arbitration provision only applies to [the staffing agency] and not [the client-employer]. [Plaintiff] agreed to arbitrate his wage and hour claims against his employer, and Garcia alleges [defendants] were his joint employers. Because the arbitration agreement controls [plaintiff]'s employment, he is equitably estopped from refusing to arbitrate his claims with [the non-signatory client-employer]. (*Id.* at p. 787.) Similarly, in *Gonzalez*, the court rejected the implication that "a complaint must expressly reference an agreement for the plaintiff's claims to be intertwined with the underlying contractual obligation" because "[n]o authority or principle supports either the limitation or encouragement of misleading artful pleading." (*Gonzalez*, *supra*, 107 Cal.App.5th at pp. 126-127 [criticizing and refusing to follow *Soltero v. Precise Distribution, Inc.* (2024) 102 Cal.App.5th 887].) Therefore, the Court concludes that Plaintiff may be compelled to arbitrate his claims against Evans under equitable estoppel principles based upon the Connect-Plaintiff arbitration agreement and Plaintiff's allegations in the complaint. Evans also contends that it is "an intended third-party beneficiary of the [Connect-Padilla] arbitration agreement." (Mot. for Joinder at p. 4.) That is the entirety of Evans's argument—with no citation to any supporting facts or evidence or law. (*Id.*) In reply, Evans cites one case, *Macaulay v. Norlander* (1992) 12 Cal.App.4th 1. (ROA #54, Reply, p. 4). But *Macaulay* addressed broker agreements and noted only that courts "have held that the introducing broker need not be named in the agreement" to be able to enforce the agreement as a third-party beneficiary. (*Macaulay*, 12 Cal.App.4th at p. 8.) Therefore, the Court concludes that Evans has failed to satisfy its burden of proof that it is entitled to enforce the Connect-Padilla agreement under a third-party beneficiary theory. However, as explained above, the Court grants Evans's motion for joinder in Connect's motion to compel arbitration of Plaintiff's claims based on equitable estoppel. Accordingly, Plaintiff is **ORDERED t**o arbitrate his individual claims against Evans, including Plaintiff's individual PAGA claim against Evans. Plaintiff's class claims against Evans are hereby **DISMISSED** pursuant to the class action waiver in the agreement. And the remainder of this action against Evans, i.e., Plaintiff's representative PAGA claim, is **STAYED** until the arbitration is had pursuant to Code of Civil Procedure section 1281.4.

		3. Defendant Bar Bakers, LLC's Motion to Compel Arbitration Defendant Bar Bakers, LLC's motion to compel arbitration is **GRANTED**. Bar Bakers moves to compel arbitration under two different arbitration agreements: (1) the Connect-Padilla agreement discussed above with respect to Connect's motion and Evans's joinder; and (2) a separate arbitration agreement between Bar Bakers and Plaintiff. **A. Connect-Padilla Agreement** For the reasons stated above with respect to Connect's motion, the Court finds that there exists a valid arbitration agreement between Connect and Plaintiff, and the agreement is enforceable and not unconscionable. The Court also **OVERRULES** all of Plaintiff's objections (ROA #76) to Johnson's declaration filed in support of Bar Baker's initial moving papers (ROA #24). As explained above in the Court's ruling on Connect's motion, while the petitioner bears the initial burden of producing prima facie evidence of a written agreement to arbitrate the controversy, this initial burden can be satisfied either by setting forth the agreement's provisions in the motion or by attaching to the motion a copy of the arbitration agreement purporting to bear the opposing party's signature; ***"[f]or this step, it is not necessary to follow normal procedures of document authentication."*** (*Gamboa*, *supra,* 72 Cal.App.5th at p. 165, internal quotes omitted, emphasis added; see also Cal. Rules of Court [CRC], rule 3.1330 [requiring same].) Thus, Plaintiff's objections to any failure by Bar Bakers to follow normal procedures of document authentication for this initial step are not well taken, particularly given Plaintiff's own citation to *Gamboa*. Additionally, for the reasons stated above with respect to Evans's joinder, the Court concludes that Plaintiff may be compelled to arbitrate his claims against Bar Bakers under equitable estoppel principles based upon the Connect-Plaintiff arbitration agreement and Plaintiff's allegations in the complaint. Although Plaintiff's arguments in opposition to Bar Baker's motion relating to equitable estoppel are slightly longer than Plaintiff's arguments in opposition to Evans's joinder, the crux of Plaintiff's arguments remains the same: Plaintiff contends that equitable estoppel does not apply because Plaintiff's "claims are not founded in, intertwined with, or dependent upon the Connect Handbook. They arise from independent statutory duties imposed by California law." (ROA #70, Opp., at p. 8.) Plaintiff also contends—without explanation—that *Garcia*, *supra*, is "distinguishable because Plaintiff's claims here do not seek to enforce any contractual right under the Connect Handbook and do not depend on the handbook's terms." (*Id.*) However, as explained above in the Court's ruling on Evans's joinder, *Garcia*'s holding was based on the employee's claims being rooted in his "employment *relationship*" with the staffing agency, not just the specific contract at issue. (*Garcia*, *supra*, 11 Cal.App.5th at p. 787, emphasis added.) Moreover, the *Gonzalez* court also rejected the implication that "a complaint must expressly reference an agreement for the plaintiff's claims to

be intertwined with the underlying contractual obligation" because "[n]o authority or principle supports either the limitation or encouragement of misleading artful pleading." (*Gonzalez*, *supra*, 107 Cal.App.5th at pp. 126-127.) Therefore, Plaintiff's arguments are unavailing.

Therefore, the Court concludes that Plaintiff may be compelled to arbitrate his claims against Evans under equitable estoppel principles based upon the Connect-Plaintiff arbitration agreement and Plaintiff's allegations in the complaint.

B. Bar Bakers-Padilla Agreement

As to the separate Bar Bakers-Padilla agreement, as an initial matter, Plaintiff does not dispute that the subject arbitration agreement is governed by the Federal Arbitration Act (FAA); that he has refused arbitration; and that the arbitration agreement applies to his individual claims alleged in this action.

Instead, Plaintiff contends only that (1) no valid arbitration agreement exists; (2) the arbitration agreement is procedurally and substantively unconscionable; and (3) even if the Court orders Plaintiff to arbitrate his individual claims, his class claims should not be dismissed. None of these arguments are availing.

i. Existence of Valid Arbitration Agreement

On the existence of a valid arbitration agreement, the Court first finds that Bar Bakers satisfied its *initial* burden by producing a copy of the subject agreement via the declaration of Carlos Fernandez. (ROA #22, passim, Exhs. 1-2.) Both an English and a Spanish version of the agreement are provided, with Plaintiff's purported signature appearing on the Spanish version. (*Id.* at Exh. 1 [English], 2 [Spanish].) Although Fernandez's declaration initially stated that Plaintiff "was employed by Connect and placed to work for Bar Bakers from December 11, 2019 to December 12, 2019" (*id.* at ¶ 3), Fernandez later explained in his second declaration that this "reference to the December 2019 dates was an inadvertent clerical error" and that the actual dates are "December 13, 2023 to December 21, 2023" (ROA #80, ¶ 10).

Also, for the reasons stated above in this ruling on Bar Baker's motion, the Court **OVERRULES** all of Plaintiff's objections (ROA #75) to Fernandez's first declaration filed in support of Bar Baker's initial moving papers (ROA #22). Again, Plaintiff's objections to any failure by Bar Bakers to follow normal procedures of document authentication for this initial step are not well taken, particularly given Plaintiff's own citation to *Gamboa*, which holds that as part of the petitioner's initial burden of producing prima facie evidence of a written agreement to arbitrate the controversy, "it is not necessary to follow normal procedures of document authentication." (*Gamboa*, *supra*, 72 Cal.App.5th at p. 165, emphasis added.)

As explained above in the Court's ruling on Connect's motion, after the petitioner meets its initial burden, the burden then shifts to the opposing

		party to produce evidence to challenge the authenticity of the agreement. (*Id.* at p. 165.) "If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties." (*Id.* at pp. 166-167.) The petitioner must satisfy their burden "by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination." (*Ruiz*, *supra*, 232 Cal.App.4th at p. 842, internal citations omitted.) Here, in opposition, Plaintiff submitted his own declaration, attesting that he cannot read and/or write English" and "can write and speak layman Spanish but . . . cannot read or understand legal jargon Spanish"; that he is "100% certain that at the time of onboarding or at any time working for my short employment with BAR BAKERS, LLC, [he] was not given this agreement, either in English or Spanish"; that "[n]o one from BAR BAKERS, LLC ever told [him] that [he] was to sign an arbitration agreement or that [he] had signed one" or that he "was giving up [his] right to bring claims in court, [his] right to a jury trial, or [his] right to participate in a class, collective, representative, or PAGA action"; that "[n]o one ever explained to [him] that any document [he] signed would prevent [him] from bringing claims in court against BAR BAKERS LLC"; that he "never signed any arbitration agreement with BAR BAKERS, LLC." (ROA #74, ¶¶ 1-7.) In short, Plaintiff contends that he did not knowingly or voluntarily agree to waive [his] right to have [his] claims heard in court, [his] right to a jury trial, or [his] right to participate in class, collective, representative, or PAGA claims." (*Id.* at ¶ 22.) In reply, Bar Bakers submitted a second declaration by Fernandez, Bar Bakers' Director of Human Resources with "ultimate responsibility for and oversight of Bar Bakers' human resources operations." (ROA #80, ¶ 2.) Fernandez attested that he is "familiar with the history, business operations, recordkeeping and onboarding practices for new workers placed with Bar Bakers," as well as "knowledge of Connect Staffing, Inc. ('Connect') employees who are placed to work at Bar Bakers." (*Id. at* ¶ 3.) Fernandez also attested that "[i]t is Bar Bakers' standard business practice that on the first date a new Connect employee begins work at Bar Bakers, the new worker is required to complete Bar Bakers' onboarding process, which includes the worker reviewing a digital copy of the Bar Bakers Arbitration Agreement in the worker's primary language, and the worker physically signing the Bar Bakers Arbitration Agreement. When workers are reviewing the digital version of the Bar Bakers Arbitration Agreement, it is Bar Bakers' custom and standard business practice to be available to explain the contents of the document and answer any questions the worker may have about the document before the worker physically signs it. It is Bar Bakers' standard business practice to maintain the signed copies of the Bar Bakers Arbitration Agreement in each worker's file." (*Id.* at ¶ 7.) Based on Fernandez's review of the records maintained by Bar Bakers as to Padilla,

		Fernandez attested that he has "determined that Padilla received and signed the Spanish version of the Bar Bakers Arbitration Agreement in accordance with Bar Bakers' standard business practice on December 5, 2023, which was the first day she was assigned to work at Bar Bakers." (*Id.* at ¶ 8.) Fernandez also produced various other documents signed by Padilla on December 5, 2023 as part of the onboarding process. (*Id.* at ¶ 9, Exh. 3.) The Court has weighed all the declarations and documentary evidence and finds that Bar Bakers has satisfied its burden of demonstrating the existence of a valid arbitration agreement between the parties by a preponderance of the evidence. The Court finds that Plaintiff received and signed the Bar Bakers-Padilla arbitration agreement. **ii. Unconscionability** The Court incorporates by reference here the general legal standards on unconscionability as set forth in the Court's ruling on Connect's motion. **a. Procedural Unconscionability** Here, Plaintiff has shown a minimal degree of procedural unconscionability due to the adhesive nature of the agreement. As for Plaintiff's claim that Bar Bakers did not explain the arbitration provisions and that Plaintiff had no meaningful opportunity to review the agreement or consult an attorney, or obtain the referenced arbitration rules, the Court finds Plaintiff's evidence to be lacking on these points. Plaintiff's declaration does not describe in detail the circumstances under which Bar Bakers provided him with the agreement for signature, including any time pressure placed on Plaintiff. Fernandez's second declaration explains that "it is Bar Bakers' custom and standard business practice to be available to explain the contents of the document and answer any questions the worker may have about the document before the worker physically signs it." (ROA #80, ¶ 7.) Plaintiff has not attested to asking for any clarification or being refused an opportunity to ask questions. To the extent Plaintiff disavows signing the agreement at all, the Court has already found that Plaintiff received and signed the agreement, so Plaintiff's evidence is also unavailing on that front. Therefore, Plaintiff has shown a minimal degree of procedural unconscionability due to the adhesive nature of the agreement. **b. Substantive Unconscionability** For the reasons stated above in the Court's ruling on Connect's motion, the Court also finds unavailing Plaintiff's argument that the agreement is substantively unconscionable merely because it gives Bar Bakers "exclusive authority to modify its terms through the Director of Human Resources, while providing no corresponding right to the employee" (Opp. at p. 12). Like the Connect-Padilla arbitration agreement, the Bar Bakers-Padilla agreement provides that Bar Bakers' right to modify is "only as necessary to

		make this agreement enforceable under any federal, state, or local law or other applicable case law effective after this agreement's initial dissemination to its workforce." (ROA #88, Exh. 1, p. 5.) Such a provision does not make the agreement illusory or otherwise unconscionable. (See *Harris*, *supra*, 248 Cal.App.4th at pp. 385-390; *Serpa*, *supra*, 215 Cal.App.4th at pp. 704-708.) As to Plaintiff's argument that the Bar Bakers-Padilla agreement is unconscionable because it "purports to impose arbitration regardless of whether the employee signs or acknowledges receipt, based solely on acceptance or continued assignment" (Opp. at p. 12), Bar Bakers correctly points out in its reply that "this clause has no bearing here because Padilla actually signed the agreement" (ROA #78, Reply, at p. 7). In any case, Plaintiff's argument lacks merit because "an agreement to arbitrate may be express or implied so long as it is written," which "means that a party's acceptance of an agreement to arbitrate may be express *or implied-in-fact where, as here, the employee's continued employment constitutes her acceptance of an agreement proposed by her employer*." (*Harris*, *supra*, 248 Cal.App.4th at pp. 383-384, internal quotes & citations omitted, emphasis added.) Moreover, "[u]nder California law, assent to an offer can occur either by way of performance under the contract or the acceptance of consideration." (*Id.* at p. 384.) In addition to citing no legal authority in support of this last argument, Plaintiff also cites no authority when he contends that the following provisions are also substantively unconscionable: "In addition, the agreement delegates arbitrability, enforceability, and formation issues to the arbitrator; contains broad class, collective, representative, and PAGA waiver language; and provides that the English version controls any ambiguity in a translated version." (Opp. at p. 12.) The Court need not consider Plaintiff's undeveloped arguments. (See, e.g., *Craddock v. Kmart Corp.* (2001) 89 Cal.App.4th 1300, 1307 [refusing to consider argument "so poorly articulated" where party does not develop stated proposition or cite authority for the proposition]; *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 [when a party "fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority," the point is "waived"]; *Sprague v. Equifax, Inc.* (1985) 166 Cal.App.3d 1012, 1050 [court is entitled to "the assistance of counsel. Accordingly every brief should contain a legal argument with citation of authorities on the points made. If none is furnished on a particular point, the court may treat it as waived, and pass it without consideration."].) In any case, none of these provisions are unconscionable. First, "parties can agree to arbitrate 'gateway' questions of 'arbitrability,' such as whether the parties have agreed to arbitrate or whether their agreement covers a particular controversy." (*Aanderud . Super. Ct.* (2017) 13 Cal.App.5th 880, 891, internal quotes omitted, quoting *Rent-a-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 68-69.) Also, "[p]arties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement." (*Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 241.) Second, the Class, Collective, and Representative Action Waiver in the subject agreement provides for waiver only "[t]o the

		maximum extent permitted by law" (ROA #22, Exh. 1 at p. 2), so it is not so broad as to be unconscionable. Third, and finally, even though Plaintiff has apparently hired his own certified translator to translate "from English to Spanish" the Bar Baker-Padilla agreement (ROA #72, ¶¶ 2-3), Plaintiff has produced no evidence that Bar Baker's Spanish version of the agreement is somehow inaccurate or otherwise contains any ambiguities such that the "English controls" term is implicated. In any case, even if this term were substantively unconscionable, the agreement provides for severance of any "invalid, void, or unenforceable" terms. (ROA #22, Exh. 1 at p. 5.) Accordingly, the Court finds that the Bar Bakers-Padilla arbitration agreement is not substantively unconscionable. As Plaintiff has only demonstrated a minimal degree of procedural unconscionability, the Court finds that the agreement is not unconscionable but is valid and enforceable. **iii. Enforceability of Class Waiver** Plaintiff's opposition additional contends that "Defendant's request to dismiss Plaintiff's class claims should be denied." (Opp. at p. 12.) The only reason Plaintiff gives for this argument is that "dismissal is improper because Defendant has not established a valid and enforceable arbitration agreement." (*Id.* at pp. 12-13.) As the Court has already ruled that Defendant *has* established a valid and enforceable arbitration agreement, Plaintiff's argument is unavailing. Plaintiff also contends—again without any citation to authority or even any further explanation—that "[e]ven if the Court were inclined to compel any portion of Plaintiff's claims to arbitration, dismissal of class claims would still be improper." (*Id.* at p. 13.) Again, the Court need not consider Plaintiff's undeveloped arguments. In any case, under the FAA, class action waivers are enforceable. (*AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 352.) Accordingly, Plaintiff is **ORDERED t**o arbitrate his individual claims against Bar Bakers, including Plaintiff's individual PAGA claim against Bar Bakers. Plaintiff's class claims against Bar Bakers are hereby **DISMISSED** pursuant to the class action waiver in the agreement. And the remainder of this action against Bar Bakers, i.e., Plaintiff's representative PAGA claim, is **STAYED** until the arbitration is had pursuant to Code of Civil Procedure section 1281.4. **3. CMC** **The Scheduled CMC is vacated and an ADR review hearing is scheduled for April 8, 2027 at 9:30AM in Department CX102**. The parties shall submit a joint status report 10 days in advance of the hearing. Defendants Connect and Bar Bakers shall give notice of all of the rulings above.

114	**Andrawes Husary vs. Shahidi** **2025-01487294**	**1.Motion - Other (Amended Application to Appear Pro Hac Vice as to Thomas J. Kherkher)** **2. Case Management Conference** Plaintiffs' amended application for pro hac vice admission of attorney Thomas J. Kherkher is **GRANTED**. On or before the anniversary of the date of this order, if this attorney remains counsel for the moving party, the moving party must pay an annual renewal fee of five hundred dollars ($500) for each year that the attorney maintains pro hac vice status in this case. (Gov. Code, § 70617, subd. (e)(2).) That said, the Court **ADMONISHES** Plaintiff and counsel for failing to file the amended application at least 10 court days before today's hearing, as the Court previously ordered on 5/14/2025. (ROA #78.) Future failures to comply with the Court's order may result in the issuance of an Order to Show Cause re Monetary Sanctions. Moving party shall provide notice.
115	**Salvation Investment, LLC vs. MO Murrayfield, LLC** **2019-01050162**	**Motion to Dismiss** Defendants Southside Ventures, LLC; Log Hill Properties Consulting LLC; Greg Logsdon; and Robert Hill's (collectively, "Seller Defendants") Motion for Dismissal Under the Doctrines of Res Judicata and Collateral Estoppel is **DENIED**. As an initial matter, the Court **ADMONISHES** Seller Defendants' counsel for submitting an opening memorandum of points and authorities that exceeds the 15-page limit imposed by the California Rules of Court. While counsel attributes the oversized brief to an "unflagged formatting error embedded into the Word document" (ROA #2975, Reply at p. 3, fn. 7), it is nevertheless the responsibility of counsel to check for such formatting issues before submitting briefs to the Court. That said, the Court exercises its discretion to consider the oversized brief in this instance. The Court also notes that after Seller Defendants filed the instant motion, Plaintiff Salvation Investment, LLC voluntarily filed a request for dismissal of its derivative claims on behalf of nominal Defendant MO Murrayfield, LLC ("Murrayfield") as to Seller Defendants. (ROA #2973.) Accordingly, the parties' dispute on this motion relates only to Plaintiff's direct claims against Seller Defendants. While the title of Seller Defendants' motion and the substance of Seller Defendants' notice of motion and motion suggest that Seller Defendants are only moving to "dismiss" Plaintiff's claims based upon the principles of res judicata and collateral estoppel, Seller Defendants' actual arguments in their supporting memorandum of points and authorities go far beyond the application of res judicata and collateral estoppel. For example, Seller Defendants submitted the declarations of Robert Hill (ROA #2942) and Greg Logsdon (ROA #2943) as evidence that Seller Defendants never

		directly communicated with Plaintiff. Seller Defendants then use this evidence throughout their memorandum of points and authorities to contend that Salvation's various direct claims against them must be "dismissed" because Salvation cannot satisfy all the elements of Salvation's claims. (ROA #2939, Mot. P&A, p. 9, 11-14.) "The procedure of moving to dismiss an action based on extrinsic evidence is disapproved in California and the motion is permitted only where it complies with the requirements for a motion for summary judgment. Here, the motion utterly fails to comply with any of the procedural requirements for a summary judgment motion." (*Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5, internal citations omitted.) "However, the motion may be treated as a nonstatutory motion for judgment on the pleadings. Such a motion may be granted when the complaint fails to state facts sufficient to constitute a cause of action. In considering this motion, the court may consider matters properly subject to judicial notice." (*Id.*) Since the Court may take judicial notice of the records of the Missouri Action, including the final judgment rendered in that action (Evid. Code, §§ 452, subds. (a), (d)), the Court will **TREAT** Seller Defendants' motion as a nonstatutory motion for judgment on the pleadings and consider only Seller Defendants' arguments based on res judicata and collateral estoppel based on the Missouri Action. Accordingly, the Court **DECLINES** to consider any arguments made by Seller Defendants requiring consideration of any other extrinsic evidence, and the Court also **SUSTAINS** all of Salvation's objections to the declarations of Hill and Logsdon submitted in support of this motion on the ground that they are irrelevant to this motion. On Seller Defendants' res judicata and collateral estoppel arguments, the Court first finds that Seller Defendants have failed to establish that there is any final judgment on the merits in the Missouri Action as to Defendant Log Hill. Seller Defendants acknowledge that the Missouri trial "ultimately tried <u>only</u> [the Missouri Plaintiffs' fraudulent misrepresentation claims against Southside and Hill." (ROA #2939, Mot. to Dismiss, 2nd set of p. 8, emphasis original.) Therefore, any judgment rendered after trial based on verdicts applying only to Southside and Hill is necessarily not a final judgment on the merits as to Log Hill. In reply, Seller Defendants contend that because "[i]n *Missouri*, Murrayfield did not dismiss its claims against Log Hill, and instead abandoned its claims against it prior to the submission of the case," then *under California Code of Civil Procedure section 581(d)*, "this abandonment constitutes a dismissal with prejudice." (Reply at p. 7, emphasis added.) Seller Defendants have cited no applicable law from *Missouri*—i.e., where this alleged claim abandonment took place—nor explained what the legal effect of such abandonment is under *Missouri* law. Indeed, based on the Court's own independent research, it appears that the only *Missouri* statute on point is section 510.130, which states that "[a] plaintiff shall be allowed to dismiss

		his action *without prejudice* at any time before the same is finally submitted to the jury . . . and not afterward." (Mo. Ann. Stat. § 510.130, emphasis added.) Nor have Seller Defendants provided sufficient evidence of the facts relating to this alleged abandonment. The only evidence is by way of the Declaration of Bradley Hansmann, who attests only that "the Missouri Plaintiffs did not submit any of their claims, including their breach of property management agreement claim, against Log Hill Properties for trial. No claims against Log Hill for mismanagement of the Murrayfield property were included in the jury instructions." (ROA #2940, ¶ 8.) The declaration then simply attaches the Missouri Plaintiffs' jury instructions as an exhibit. (*Id.* at Exh. 3.) Did Missouri Plaintiffs file any request for dismissal of Log Hill? Did the Missouri court enter any dismissal or judgment involving Log Hill? In short, none of the evidence submitted by Seller Defendants addresses these questions or conclusively establishes how the *Missouri* court treated the Missouri Plaintiff's claims against Log Hill. (See *Niko v. Foreman* (2006) 144 Cal.App.4th 344, 368 [rejecting party's arguments made "without supporting legal or factual analysis," as it is not the court's function to "act as counsel for [a party] and furnish a legal argument' for that party]; *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 [when a party "fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority," the point is "waived"].) Therefore, Log Hill has not demonstrated that it is entitled to "dismissal" or judgment on the pleadings in this case because of res judicata or collateral estoppel based upon the Missouri Action. As for Logsdon, Southside, and Hill, the Court finds that these Defendants have failed to establish that either res judicata or collateral estoppel applies here to bar Salvation's direct claims against them. "The doctrine of res judicata has two aspects—claim preclusion and issue preclusion." (*Samara v. Matar* (2017) 8 Cal.App.5th 796, 803.) "Claim preclusion prevents relitigation of the same cause of action in a second suit between the same parties in privity with them. Claim preclusion arises if a second suit involves (1) the same cause of action (2) between the same parties or those in privity with them (3) after final judgment on the merits in the first suit." (*Id*, internal quotes, italics, and brackets omitted.) Collateral estoppel or issue preclusion "prohibits the relitigation of issues argued and decided in a previous case, even if the second suits raises a different cause of action. . . . The doctrine applies (1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit, or one in privity with that party." (*Id.* at p. 804, internal quotes & citations omitted.) The Court finds that Logsdon, Southside, and Hill have failed to demonstrate that Salvation was a party in the Missouri Action (this is

undisputed) or a party in privity with the Missouri Plaintiffs in the Missouri Action. These Seller Defendants' only argument offered to support their privity argument is as follows:

> Salvation had no direct relationship, communications, or dealings with Sellers prior to the filing of this California Action. (Declaration of Robert Hill ("Hill Decl.") ¶¶ 4-7; Declaration of Greg Logsdon ("Logsdon Decl.") ¶¶ 3-6.) As such, Salvation's assertion of direct causes of action against Sellers necessarily arise out of its contractual shareholder relationship (privity) with Murrayfield and their right to be free from the "injury" alleged regarding the Murrayfield Property. Thus, Salvation is in privity with Murrayfield (a party to the previously adjudicated claim) in satisfaction of this element of claim preclusion.

(Mot. P&A at p. 8.) In short, this argument relies upon extrinsic evidence that the Court may not consider on this speaking motion to dismiss treated as a motion for judgment on the pleadings. Therefore, this argument fails on this motion for judgment on the pleadings.

In reply, Logsdon, Southside, and Hill expand upon this argument by contending that "the point is that, to the extent Salvation seeks recovery for injury inflicted upon Murrayfield and reflected in the lost value of Salvation's membership interest, the claim belongs to Murrayfield. Murrayfield was the real party in interest." (Reply at p. 6.) However, this argument misconstrues Salvation's direct claims, which allege that Murrayfield, Logsdon, Southside, and Hill conspired to collectively defraud Salvation into investing in the first place (see, e.g., ROA #902, TAC, at ¶¶ 58-172)—not just that Seller Defendants defrauded Murrayfield into purchasing the property, thereby resulting in Murrayfield suffering losses. Thus, the injured party for Salvation's direct claims is Salvation, not Murrayfield.

Logsdon, Southside, and Hill's reply also contends that "[t]here is no question that Murrayfield had the same interest as Salvation and a strong motive to assert that interest in pursuing Murrayfield's fraud claims against sellers." (*Id.* at p. 6.) However, on a motion for judgment on the pleadings, the Court must assume as true Plaintiff's allegations in the complaint. (See *Southern Cal. Edison Co. v. City of Victorville* ("*SCE*") (2013) 217 Cal.App.4th 218, 227 [standard for MJOP is "essentially the same as that applicable to a general demurrer"]; *Thomas v. Regents of University of Cal.* (2023) 97 Cal.App.5th 587, 611 [court must construe complaint liberally and accept as true factual allegations of complaint "however odd or improbable" they may be].) Here, Plaintiff alleges that Murrayfield conspired or worked together with Logsdon, Southside, and Hill to defraud Plaintiff. Assuming that is true, there is no question that Murrayfield would *not* have the same interest as Salvation.

The Court also finds that the Missouri Plaintiffs' claims against Logsdon, Southside, and Hill are not the same cause of action as Salvation's claims against them in this case. "California's res judicata doctrine is based upon the primary right theory," as "a 'cause of action' is comprised of a 'primary right' of the plaintiff." (*Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 904, internal quotes omitted.) "[T]he primary right is simply the plaintiff's right to be free from the particular injury suffered." (*Id.*, internal quotes omitted.) When "the basis of the claim is completely different, and rests upon a complete separate set of facts" from the claim in the first suit, res judicata does not apply. (*Sawyer v. First City Financial Corp.* (1981) 124 Cal.App.3d 390, 402-403 ["breach of contract by failing to pay a note violates a 'primary right' which is separate from the 'primary right' not to have the note stolen"].)

Here, in the Missouri Action, the Missouri court granted summary judgment on the only claim alleged against Logsdon, i.e., unjust enrichment. (ROA #2977, Notice of Errata, Exh. 2.) According to the operative complaint filed in the Missouri Action, the Missouri Plaintiffs, including Murrayfield, alleged that Logsdon was unjustly enriched because of the alleged fraud perpetrated upon Murrayfield by the sellers of the Murrayfield property, including Southside and Hill. (See ROA #2940, Exh. 1 [Mo. Compl.], ¶¶ 161-165.) As for Southside and Hill, the only two claims that were adjudicated on the merits were Murrayfield's fraud claims. Thus, the primary right in the Missouri Action was *Murrayfield's* right to be free from fraud committed by Southside and Hill. In contrast, here, as explained above, Salvation's direct claims against Logsdon, Southside, and Hill allege that *Murrayfield, Logsdon, Southside, and Hill conspired to collectively defraud Salvation*. The inference is that Murrayfield was not actually defrauded by Southside and Hill but were in fact working together with Southside and Hill (and Logsdon) to defraud Salvation. Thus, the primary right in this action is *Salvation's* right to be free from fraud committed by *Murrayfield together* with Logsdon, Southside, and Hill. Thus, if anything, any ruling in the Missouri Action concluding that Southside and Hill did not defraud Murrayfield *supports or is at least consistent with* Salvation's claims here. As Salvation put it, "[i]n other words, Murrayfield was not defrauded by any of the Sellers because Murrayfield was itself in on the fraud." (Opp. at p. 17.)

Accordingly, for these same reasons, the Court finds that any issues adjudicated in the Missouri Action as to Murrayfield's fraud claims against Southside and Hill and Murrayfield's unjust enrichment claims against Logsdon are not the same issues to be adjudicated in this action. Seller Defendants contend that "each of Salvation's direct causes of action requires Salvation to prove up at least one of two common factual issues: [¶] 1) that Sellers misrepresented pertinent information to Murrayfield and its shareholders regarding the Murrayfield Property. [¶] 2) that Sellers concealed pertinent information from Murrayfield and its shareholders regarding the Murrayfield Property." (Mot. P&A at p. 9.) But that is incorrect. Again, Salvation's theory is that Murrayfield, Logsdon, Southside, and Hill were together "in on the fraud" perpetrated against Salvation, not that Logsdon, Southside, or Hill misrepresented anything to Murrayfield. Therefore, whether Seller Defendants misrepresented anything to Murrayfield is not an issue that is pertinent to Salvation's direct claims.

The Court also **ADMONISHES** Seller Defendants for mischaracterizing this Court's previous comments at the 3/13/2026 hearing on a motion to stay

		the instant action. (See Reply at pp. 2, 9, fn. 5.) In their reply, Seller Defendants state that this Court previously "opined the factual conspiracy issues had, in fact, been adjudicated in Sellers' favor" in the Missouri Action, thereby implying that the Court had already decided or ruled that the conspiracy issues had already been decided as applied to Plaintiff's *direct* claims in this case. (*Id.*) But the Court explicitly stated that it did not "want to get too far down the path because [the Court did not [have a motion in front of [the Court] on [whether conspiracy has been adjudicated]," and the Court also clarified that when the Court "was really just mainly trying to understand some of the theories as to how this case could still be viable," by "this case," the Court meant "very specific[ally] . . . the MO Murrayfield . . . derivative claims given that judgment." (ROA #2941, Exh. 1, 12:26-13:6.) The Court's statements are not amenable to the characterization provided by the Seller Defendants. In short, Logsdon, Southside, and Hill have also failed to demonstrate that they are entitled to "dismissal" or judgment on the pleadings in this case because of res judicata or collateral estoppel based upon the Missouri Action. Plaintiff Salvation shall give notice.
116	**Gerlette vs. Altman Specialty Plants, LLC** **2023-01324651**	**Motion for Final Approval of Class/PAGA settlement** Plaintiff Alicia Esquivel Gerlette's Motion for Final Approval of Class Action and PAGA Settlement is **CONTINUED September 24, 2026 at 2:00 p.m. in Department CX102** in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 7/29/2022, Plaintiff Alicia Esquivel Gerlette, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant Altman Specialty Plants, LLC, which Plaintiff dismissed without prejudice after she acquiesced to Defendant's demand that she submit a demand for individual arbitration. After Defendant failed to timely wire payment of the initial arbitration invoice, Plaintiff withdrew her individual arbitration demand and refiled her class action complaint on 5/10/2023 in the instant action. (ROA #2.) On 7/18/2023, Defendant answered the complaint. (ROA #16.) The operative complaint is the second amended complaint (SAC), filed on 6/25/2025 per the parties' stipulation and the Court's order, which alleges various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #97.) On 6/26/2025, Plaintiff filed a Motion for Preliminary Approval of the Class Action and PAGA Settlement. (ROA #104.) On 2/26/2026, at the 3rd hearing on the matter, the Court granted the motion. (ROA #153.) On 4/8/2026, the Court entered the order granting the motion. (ROA #159.)

		On 6/23/2026, Plaintiff filed the instant Motion for Final Approval of Class and PAGA Action Settlement, Class Representative Enhancement Payment, Attorneys' Fees, and Costs. (ROA #166.) The motion seeks approval of the parties' Stipulation of Settlement ("Settlement Agreement"), attached as Exhibit G to Plaintiff's counsel's declaration at ROA #147, which provides for the settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount ("GSA") of $500,000. The GSA includes $50,000 allocated for PAGA penalties. The Court concludes that an attorneys' fee award totaling $150,000 or 30% of the GSA, constituting a 1.04 multiplier against the lodestar amount, is fair, adequate, and reasonable for a class and settlement of this size, including considering the action's contingent nature and the results achieved. The Court also concludes that litigation costs should not include overhead or nonrecoverable items such as postage, copying, or Westlaw research costs. Therefore, counsel should deduct $356.05 from the requested amount for costs. The Court further concludes that a Class Representative Enhancement Award of $5,000 is fair, adequate, and reasonable for a class and settlement of this size, considering that there was nothing extraordinary about Plaintiff's contribution to the case. Additionally, the Court has identified the following issue with the moving papers, which must be addressed by Class Counsel before the Court will sign the Order Granting Final Approval and Judgment: 1. The administrator's declaration filed in support of the motion (ROA #172) attested to two different total pay periods: In ¶ 12 of the administrator's declaration, the administrator attests the escalator clause was not triggered because there are only 166,136 pay periods as advised by Defendant. But in ¶ 15 of the administrator's declaration, the administrator attests that the 5,312 Aggrieved Employees worked a total of 215,550 pay periods. The administrator must resolve this discrepancy, confirm whether the escalator clause has been triggered, and confirm the correct average, high, and low payments that Aggrieved Employees will receive based on the correct number of pay periods. 2. Class Counsel must attest as to whether there is a fee-splitting agreement with any other counsel, or confirm there is none. Class Counsel must also provide a revised [Proposed] Order of Final Approval and Judgment with the following revisions: 1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order. The Court further refers Class Counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's

		website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Class Counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.
117	**Heath vs. Rainbow Home Care Services, Inc.** **2024-01444583**	**Motion for Final Approval of Class/PAGA Settlement** Plaintiff David Heath's Motion for Final Approval of Class Action and PAGA Settlement is **CONDITIONALLY GRANTED**, pending the resolution of the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 12/6/2024, Plaintiff David Heath, individually and on behalf of other members of the general public similarly situated, filed a class action and PAGA complaint against Defendant Rainbow Home Care Services, Inc., alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #2.) On 6/27/2025, Plaintiff filed a Motion for Preliminary Approval of the Class action and PAGA settlement. (ROA #37.) On 2/19/2026, at the second hearing on the matter, the Court conditionally granted the motion. (ROA #95.) On 2/27/2026, the Court entered the signed order granting the motion. (ROA #100.) On 6/25/2026, Plaintiff filed the instant Motion for Final Approval of Class Action and PAGA Settlement. (ROA #117.) On 7/9/2026, Plaintiff submitted an updated declaration by the administrator. (ROA #121.) The motion seeks approval of the Amended Joint Stipulation of Class Action and PAGA Settlement ("Settlement Agreement"), which provides for the settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount ("GSA") of $950,000. The GSA includes $75,000 allocated for PAGA penalties. The Class is comprised of 697 Class Members, defined as "all current and former hourly-paid or non-exempt employees of Defendant within the State of California at any time during the Class Perio." The Class Period is 12/6/2020 through 7/11/2025. The settlement also includes 434 Aggrieved Employees, defined as "all current and former hourly-paid or non-exempt employees of Defendant within the State of California at any time during the PAGA Period." The PAGA Period is 9/11/2023 through 7/11/2025.

		The settlement administrator, ILYM Group, Inc., reports as follows:
		
		• On 5/1/2026, the administrator sent class notices via U.S. Mail to 697 Class Members, including 434 Aggrieved Employees.
		• As of 7/9/2026:
		  o 48 packets were returned as undeliverable. After skip tracing, administrator remailed 31 packets, but 17 packets remained undeliverable.
		  o No requests for exclusion, objections, or workweek disputes were received.
		
		Therefore, 100% of the Class is participating in the settlement.
		
		The Court concludes that the $950,000 settlement is fair, adequate, and reasonable, and in the best interests of the Class Members. The Court also concludes that the notice to the Class was adequate. The Court also certifies the defined Class for settlement purposes only.
		
		The Court concludes that an attorneys' fee award totaling $285,000 or 30% of the GSA, constituting a 1.58 multiplier against the lodestar amount, is fair, adequate, and reasonable for a class and settlement of this size, including considering the action's contingent nature and the results achieved.
		
		The Court further concludes that a Class Representative Service Payment of $5,000 is fair, adequate, and reasonable for a class and settlement of this size, considering that there was nothing extraordinary about Plaintiff's contribution to the case.
		
		The Court has identified the following minor issue with the moving papers, which must be addressed by Class Counsel before the Court will sign the Order Granting Final Approval and Judgment:
		
		1. The moving papers do not provide the final total number of workweeks and pay periods encompassed by the updated Class Period after the escalator clause was triggered and Defendant elected to shorten the class period.
		
		This issue must be addressed by Class Counsel within five (5) court days.
		
		Upon resolution of this issue, the Court will grant the instant motion and approve the following specific awards and disbursements from the GSA:
		
		• Attorneys' fees totaling $285,000.00 awarded to Class Counsel;
		• Litigation costs totaling $17,774.88 awarded to Class Counsel;
		• Settlement administration costs of $16,350.00 awarded to ILYM Group, Inc.;
		• Class Representative Service Payment of $5,000.00 awarded to Plaintiff David Heath; and
		• $48,750.00 remitted to the Labor and Workforce Development Agency (LWDA) for its share of the PAGA penalties.

		The Net Settlement Amount payable to all Class Members is $577,125.12, including the $26,250.00 in PAGA penalties to be distributed to the Aggrieved Employees, in accordance with the terms of the Settlement Agreement. Pursuant to the Settlement Agreement, Defendant is ordered to separately pay all employer payroll taxes owed on the wage portions of the individual settlement payments. Within five (5) court days, Class Counsel must submit a revised Proposed Order of Final Approval and Judgment with the following revisions: 1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order. 2. The proposed order and judgment should reference by name and ROA number the declaration(s) to which the Settlement Agreement and any amendments thereto are attached. 3. In ¶ 19, the proposed order and judgment should specify that the settlement administrator will post a copy of the order and judgment on the website for 180 days. 4. The proposed order and judgment should state that the Court's continuing jurisdiction is pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h). 5. The proposed order and judgment should state that the settlement administrator's final report should be filed at least 16 *court* days before the Final Accounting hearing. Final Accounting is set for April 6, 2028, at 2:00 p.m. in Department CX102. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing date. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement Agreement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff is ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days.

118	**Torres vs. JF RETAIL SERVICES, LLC** **2022-01244519**	**Motion for Final Approval of Class/PAGA Settlement** The court has reviewed and considered the papers filed in support of plaintiffs' motion for final approval of a $500,000 class action and PAGA settlement. *Upon submission of a revised proposed order, as explained below, the court will grant the motion as follows*: $10,500 total for enhancement awards, i.e., $3,500.00 each to plaintiffs (i) Angelique Teddington, (ii) Dante Teddington, and (iii) Ashley Behnken; $150,000.00 for attorneys' fees; $29,069.09 for litigation costs; $12,250.00 for settlement administration costs; and $75,000.00 total PAGA penalties ($56,250.00 to the LWDA). Plaintiffs to submit a revised proposed order reflecting the above disbursements and all revisions identified below. Plaintiffs must also submit a redline version showing all changes. 1. The release is not effective upon the effective date. ROA 340 ¶ 9. As provided in the settlement (¶ 5), it is effective upon full funding of the settlement. 2. Delete the last sentence of proposed order (ROA 340) paragraph 14. 3. Add "and the Settlement Administrator" after "Parties" in proposed order (ROA 340) paragraph 16. **The final accounting hearing is scheduled for September 2, 2027 at 2:00 p.m. in Department CX102**. Plaintiffs shall submit a final accounting report at least 16 court days before the final accounting earing regarding the status of the settlement administration. The final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. If all funds are not fully and finally disbursed prior to the filing deadline, including to the State Controller, plaintiffs must request a continuance. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.

119	**Benevides vs. S.I. Management, LLC** **2024-01400577**	**Motion for PAGA Action Settlement Approval** The Court has reviewed the supplemental materials provided by Plaintiff's Counsel and finds that they adequately address the previously identified issues except that counsel has failed to submit a revised proposed order as previously ordered by the Court on 3/12/2026 at ROA #103. Accordingly, the Court **sets an OSC re Monetary Sanctions for September 3, 2026 at 9:30 a.m. in Department CX102** for counsel's failure to comply with the Court's 3/12/2026 order. Any response to the OSC must be filed at least 5 court days prior to the OSC hearing. In the interests of justice, despite counsel's failure to submit a revised proposed order, Plaintiff Fernanda Benevides's Motion for Approval of PAGA Settlement is **GRANTED**. This is a PAGA-only action. On 5/17/2024, Plaintiff Fernanda Benevides filed a PAGA complaint against Defendants S.I. Management, Inc.; Stor-It Costa Mesa, LLC; Stor-It Downey Manager, LLC; Stor-It Long Beach, LLC; Stor-It Properties, Inc.; Stor-It Properties, LLC; and Stor-It Vault, LLC. (ROA #2.) Defendants filed separate answers on 7/2/2024. (ROA #25-31.) The operative complaint is the first amended complaint (FAC), filed on 9/11/2025, which alleges a single cause of action for PAGA penalties. (ROA #75.) Defendants filed separate answers on 9/29/2025. (ROA #77-83.) On 10/16/2025, Plaintiff filed the instant Motion for Approval of PAGA Settlement and submitted for the Court's review the PAGA Settlement Agreement and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The Motion seeks approval of the parties' proposed settlement of Plaintiff's PAGA claims for the non-reversionary gross settlement amount (GSA) of $125,000. On 3/12/2026, the Court continued the 1st hearing on the Motion and asked Plaintiff's counsel to address various issues. (ROA #103.) Plaintiff's counsel then submitted supplemental materials, including an amended version of the PAGA Settlement Agreement ("Amended Settlement") and an amended notice/cover letter to aggrieved employees (ROA #122). Based on a review of all submissions made in support of the Motion, the Court finds the settlement is fair and reasonable. The Court concludes that an attorneys' fee award totaling $31,250 or 25% of the GSA is fair, adequate, and reasonable for a settlement of this size, including considering the action's contingent nature and the results achieved, as well as counsel's work on this matter. The Court also concludes that counsel has not adequately supported their request for $250 in "Future Costs" with line-item descriptions for each filing

		and dollar amounts for what the cost of each filing would be. Accordingly, the Court deducts the $250 in "Future Costs" from the amount requested. The Court further concludes that a Service Payment of $5,000 is fair, adequate, and reasonable for a settlement of this size, considering that there was nothing extraordinary about Plaintiff's contribution to the case. As a result, the Court grants the Motion and approves the following disbursements and awards from the Gross Settlement Amount: • Attorneys' fees totaling $31,250.00 awarded to Plaintiff's Counsel; • Litigation costs totaling $17,503.89 awarded to Plaintiff's Counsel; • Settlement administration costs of $2,995.00 awarded to Phoenix Settlement Administrators; and • Service Payment of $5,000 awarded to Plaintiff. PAGA penalties in the amount of $68,251.11 shall be allocated as follows: seventy-five percent (75%), or $51,188.33, payable to the Labor and Workforce Development Agency (LWDA); and twenty-five percent (25%), or $17,062.78, payable to the Aggrieved Employees in accordance with the terms of the Amended Settlement Agreement. **Within five (5) court days, Plaintiff's Counsel must submit a revised Proposed Order that makes the revisions previously ordered by the Court and as follows:** 1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order. 2. The proposed order and judgment should identify the Settlement Agreement by its actual name. 3. The proposed order and judgment should reference by name and ROA number the declaration(s) to which the Settlement Agreement and any amendments thereto are attached. 4. All terms that require definition must either be defined in the proposed order and judgment itself or clearly incorporate by reference definitions found elsewhere in the record. 5. The proposed order and judgment should include the definitions of the Aggrieved Employees and the PAGA Period. 6. The proposed order and judgment should specify the setting of a Final Accounting hearing date. Counsel should not leave blank but should propose a realistic date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. The parties must report to the Court the total amount that was actually paid to Aggrieved Employees and all others in accordance with the settlement agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing

		date. As a reminder, this Court hears Law & Motion matters on Thursdays at 2:00 p.m. 7. The proposed order and judgment should state that the Court's continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6. Final Accounting will be set in accordance with the Court's Order of Final Approval and Judgment after Plaintiff's counsel proposes a realistic date. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Aggrieved Employees and all others in accordance with the Settlement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days of the date the Order and Judgment is entered.
120	**Fabian vs. Fruth Custom Plastics, Inc.** **2024-01408686**	**Motion for Preliminary Approval of Class/PAGA Settlement** The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Aidee Fabian's Motion for Preliminary Approval of Class Action and PAGA Settlement is **GRANTED**. This is a putative wage-and-hour class action and PAGA matter. On 6/21/2024, Plaintiff Aidee Fabian, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendant Fruth Custom Plastics, Inc. (ROA #2.) Defendant answered on 8/14/2024. (ROA #13.) The operative complaint is the first amended complaint, filed on 11/6/2025 pursuant to a stipulated order, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #49.) On 11/13/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement and submitted the Class Action and PAGA Settlement Agreement and Release ("Settlement Agreement") and Class Notice for the Court's review. The motion seeks preliminary approval of the parties' proposed settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount (GSA) of $575,000. The GSA includes $30,000 allocated for PAGA penalties. On 3/5/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. Counsel then submitted supplemental materials, including an Amendment to Class Action and

		PAGA Settlement Agreement and Release ("1st Amendment") and an amended Class Notice. On 5/28/2026, the Court continued the second hearing on the motion and asked Class Counsel to address various issues. Counsel then submitted supplemental materials, including a Second Amendment to Class Action and PAGA Settlement Agreement and Release ("2nd Amendment") and a further amended Class Notice. Based on a review of all papers submitted, including the Settlement Agreement and the 1st and 2nd Amendments thereto, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing. **The Motion for Final Approval will be heard on 12/3/2026 at 2:00 p.m. in Department CX102**. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist. Also at the Final Approval hearing, Class Counsel must also disclose whether counsel has any fee-splitting arrangement with any other counsel, or confirm none exists. Additionally, at the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in *Golba v. Dick's Sporting Goods, Inc.* (2015) 238 Cal.App.4th 1251, 1272, and *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiff to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.

121	**Gonzalez vs. Bear Down Brands, LLC** **2023-01340515**	**Motion for Preliminary Approval of Class/PAGA Settlement** The Court has reviewed the supplemental materials provided by Class Counsel and finds that they fail to adequately address the previously identified issues and/or raise new issues that must be addressed. Accordingly, Plaintiff Nicolas Gonzalez's Motion for Preliminary Approval of Class Action and PAGA Settlement is further **CONTINUED to September 25 at 2:00 p.m. in Department CX102** in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 8/7/2023, Plaintiff Nicolas Gonzalez, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendant Bear Down Brands, LLC, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #2.) Defendant answered on 11/8/2023. (ROA #13.) On 1/8/2026, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class/PAGA Action Settlement Agreement and Class Notice for the Court's review. The motion seeks preliminary approval of the parties' proposed settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount (GSA) of $149,250. The GSA includes a credit of $37,250 for money already paid by Defendant to individual *Pick Up Stix* Settled Class Members allegedly as a result of this action and $12,500 allocated for PAGA penalties. On 5/14/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. (ROA #70.) Counsel has submitted supplemental materials, including an Amended Class/PAGA Action Settlement Agreement ("Amended Settlement Agreement") and an amended Class Notice. The Court has identified several issues with the supplemental papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted: 1. The Court's previous 5/14/2026 minute order stated: "The moving papers do not provide sufficient information about Defendants' *Pick Up Stix* settlement payments—including but not limited to the dates of the settlement payments, how many Class Members were paid, how much was paid to each, or what type of release Defendant obtained in exchange—so as to allow the Court to properly evaluate the fairness, adequacy, and reasonableness of the terms of the instant Settlement Agreement, including the $250 payments to Pick Up Stix Unsettled Class Members in the first instance before pro rata allocation of the remaining Net Settlement Amount among all Class Members.

		The moving papers also do not address whether the named Plaintiff received a *Pick Up Stix* settlement from Defendant." (ROA #70.) Plaintiff's Supplemental Brief addresses most of these questions, but still fails to address whether the named Plaintiff received a *Pick Up Stix* settlement from Defendant. (ROA #73.) 2. Plaintiff's Supplement Brief explains that as part of Defendant's *Pick Up Stix* settlement program, Defendant paid a total of $26,250 to 88 Class Members. This raises the question why Defendant is receiving a credit of $37,250—i.e., $11,000 more—under the Amended Settlement for money already paid to individual *Pick Up Stix* Settled Class Members (see Am. Settlement, ¶¶ I.S, III.A). 3. Similarly, Plaintiff's Supplement Brief explains that under Defendant's *Pick Up Stix* settlement program, Defendant paid 61 Class Members $500 each and 27 Class Members $250 each, with the amount of the payment based on the number of weeks the Class Member was employed by Defendant. Counsel does not explain, however, the valuation analysis used to determine that $250 is an appropriate equalization payment for the *Pick Up Stix* Unsettled Class Members under the Amended Settlement Agreement. For example, was this amount determined based on an analysis of the number of weeks actually worked by the *Pick Up Stix* Unsettled Class Members? Class Counsel must also provide the Court with a further revised Class Notice with the following revisions: 1. The Court's previous 5/14/2026 minute order stated: "Section 7 of the notice may be interpreted as advising Class Members to wait to object until after Plaintiff has filed his final approval motions, which need not occur until 16 court days before the final approval hearing date and may therefore occur after Class Members' deadline to send written objections. The notice should simply inform Class Members of the deadlines for Plaintiff's filings in support of final approval as well as the final approval hearing date." (ROA #70.) The parties' edits do not adequately address this concern. Section 7 of the revised Class Notice still starts by stating, "Before deciding whether to object, you may wish to see what Plaintiff and Defendant are asking the Court to approve." This sentence may still be interpreted as advising Class Members to wait to object until after Plaintiff has filed his final approval motions, which need not occur until 16 court days before the final approval hearing date and may therefore occur after Class Members' deadline to send written objections. This sentence should be deleted. Class Counsel must also provide a further revised Proposed Order with the following corrections and revisions: 1. The ROA number is incorrectly listed for counsel's supplemental declaration to which the Amended Settlement Agreement is attached. It should be #73, not #71.

		2. The amount for the cost of administration is incorrectly listed as $6,500 rather than $6,550 as provided in the Amended Settlement Agreement at ¶ III.B.4. Class Counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide red-lined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any corrections or revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this Court's ruling, including to the LWDA, within five (5) calendar days, and file proof of service. Class Counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
122	**Regalado Contreras vs. Inmar Supply Chain Solutions, LLC** **2024-01444626**	**Motion for Preliminary Approval of Class/PAGA Settlement** The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Mario Regalado Contreras's Motion for Preliminary Approval of Class Action and PAGA Settlement is **GRANTED**. This is a putative wage-and-hour class action and PAGA matter. On 12/6/2024, Plaintiff Mario Regalado Contreras, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant. (ROA #2.) On 2/10/2025, Plaintiff filed a first amended complaint to add a cause of action for PAGA penalties. (ROA #17.) The operative complaint is the second amended complaint, filed on 11/4/2025 pursuant to the parties' stipulation and the Court's order, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #73.) On 11/3/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Stipulation of Class and PAGA Settlement and Class Notice for the Court's review. The motion seeks preliminary approval of the parties' proposed settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement

amount (GSA) of $160,000. The GSA includes $10,000 allocated for PAGA penalties.

On 11/3/2025, Plaintiff filed the instant motion. (ROA #64.) On 5/14/2026, the Court continued the 1st hearing on the matter and asked counsel to address various issues. (ROA #83.) Counsel has submitted supplemental materials, including an Amended Class Action and PAGA Settlement Agreement ("Amended Settlement Agreement") and an amended Class Notice.

Based on a review of all papers submitted, including the Amended Settlement Agreement, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing.

Within five (5) court days, Class Counsel must provide a further amended Proposed Order with the following edits:

1. The proposed order should include all the referenced attachments.
2. The proposed order must list the correct ROA number for counsel's supplemental declaration to which the Amended Settlement Agreement is attached (i.e., #94, not #83).
3. The amounts to be distributed from the GSA listed in ¶ 14 of the Amended Proposed Order omits the amount for administration costs as set forth in the Amended Settlement Agreement (i.e., $8,500).

The Motion for Final Approval will be heard on December 10, 2026 at 2:00 p.m. in Department CX102. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist.

Also at the Final Approval hearing, Class Counsel must also provide details of counsel's any fee-splitting arrangement with other counsel.

Additionally, at the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in *Golba v. Dick's Sporting Goods, Inc.* (2015) 238 Cal.App.4th 1251, 1272, and

		Clark v. American Residential Services, LLC (2009) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiff to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
123	**Silva vs. General Underground Fire Protection, Inc.** **2024-01422176**	**Motion for Preliminary Approval of Class/PAGA Settlement** The court has reviewed and considered the supplemental papers. The motion for preliminary approval of the $875,000 class and PAGA action settlement is GRANTED as to the current version of the parties' settlement agreement, as amended. The court also approves the current version of the class notice. **The motion for final approval shall be heard on December 10, 2026 at 2:00 p.m. in Department CX102**. Moving papers are due 16 court days prior to the hearing. As to the proposed order, the following revisions shall be made, and counsel shall file a redline showing all changes. 1. Identify the first addendum to the settlement and attach it as a separate exhibit (no.2). ¶ 1. 2. The complete notice packet (including the certified translation) should be attached as a separate exhibit (no. 3). ¶ 7. Plaintiff to give notice of the court's ruling, including to the LWDA, within 10 calendar days, and file proof of service.